



Criminal Justice (Scotland) Act 1987

1987 CHAPTER 41

An Act to make provision for Scotland as regards the recovery of the proceeds of drug trafficking; to make further provision as regards criminal justice in Scotland; and for connected purposes.
[15th May 1987]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

CONFISCATION OF PROCEEDS OF DRUG TRAFFICKING ETC.

Confiscation orders

1.—(1) Subject to the provisions of this Part of this Act, where a person is convicted in the High Court of, or is under section 104(1) of the 1975 Act remitted to that Court for sentence as regards, an offence to which this section relates the Court may, on the application of the prosecutor made when he moves for sentence (or, if the case is one so remitted, made before sentence is pronounced), make an order (in this Act referred to as a “confiscation order”) requiring the person to pay such amount as the Court considers appropriate, being an amount not exceeding—

Confiscation
orders.
1975 c. 21.

- (a) subject to paragraph (b) below, what it assesses to be the value of the proceeds of the person's drug trafficking; or
 - (b) if the Court is satisfied that the property that might be realised in terms of this Part of this Act at the time the confiscation order is made has a value less than that of the proceeds of the person's drug trafficking, what it assesses to be the value of that property.
- (2) This section relates to any of the following—
- (a) an offence under section 4(2) (production, or being concerned in production, of controlled drug), 4(3) (supply of, or offer to supply, or being concerned in supply of, controlled drug), 5(3)

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1971 c. 38.

(possession of controlled drug with intent to supply) or 20 (assisting in, or inducing commission of, certain drug related offences punishable under foreign law) of the Misuse of Drugs Act 1971;

1979 c. 2.

- (b) in connection with a prohibition or restriction on importation having effect by virtue of section 3 of the said Act of 1971, an offence under section 50(2) or (3) (improper importation), 68(2) (improper exportation) or 170 (fraudulent evasion of duty etc.) of the Customs and Excise Management Act 1979;
- (c) an offence under section 43 of this Act;
- (d) an offence of conspiring, inciting or attempting to commit an offence to which, by virtue of paragraph (a), (b) or (c) above, this section relates.

(3) The Court shall take account of the provisions of any order made by it under subsection (1) above in determining the amount of any fine imposed on the person as regards the offence but not in determining any other matter as regards sentence.

(4) For the purposes of any appeal or review, a confiscation order is a sentence.

(5) No enactment restricting the power of a court dealing with a person in a particular way from dealing with him also in any other way shall by reason only of the making of an order under subsection (1) above (or the postponement of a decision as regards making such an order) restrict the High Court from dealing with a person in any way the Court considers appropriate in respect of an offence to which this section relates.

(6) In this Part of this Act, "drug trafficking" means doing or being concerned in any of the following, whether in Scotland or elsewhere—

- (a) producing or supplying a controlled drug where the production or supply contravenes section 4(1) of the said Act of 1971;
- (b) transporting or storing such a drug where possession of it contravenes section 5(1) of that Act;
- (c) importing or exporting such a drug where the importation or exportation is prohibited by section 3(1) of that Act;
- (d) producing, supplying, transporting, storing, importing or exporting such a drug in contravention of a corresponding law ("corresponding law" having the meaning assigned by section 36(1) of that Act);

and includes, whether in Scotland or elsewhere, entering into or being otherwise concerned in an arrangement whereby—

- (i) the retention or control by or on behalf of another person of the other person's proceeds of drug trafficking is facilitated, or
- (ii) the proceeds of drug trafficking by another person are used to secure that funds are placed at the other person's disposal or are used for the other person's benefit to acquire property by way of investment.

Postponed
confiscation
orders.

2.—(1) The Court, if it considers that it requires further information before coming to any decision as regards making an order under section 1(1) of this Act, may subject to subsection (4) below postpone that decision for a period not exceeding six months after the date of conviction

for the purpose of enabling that information to be obtained; but without prejudice to sections 179 and 219 of the 1975 Act may notwithstanding such postponement proceed, on the prosecutor's motion therefor, to sentence or to otherwise deal with the person in respect of the conviction:

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1975 c. 21.

Provided that no fine shall be imposed before the decision is taken.

(2) Where under subsection (1) above a decision has been postponed for a period, any intention to appeal under section 228 of the 1975 Act against conviction or against both conviction and any sentence passed during that period in respect of the conviction, shall be intimated under section 231(1) of that Act not within two weeks of the final determination of the proceedings but within two weeks of—

- (a) in the case of an appeal against conviction where there has been no such sentence, the day on which the period of postponement commences;
- (b) in any other case, the day on which such sentence is passed in open court.

(3) Notwithstanding any appeal of which intimation has been given by virtue of subsection (2) above, a person may appeal under the said section 228 against the confiscation order (if the decision is to make one) or against any other sentence passed, after the period of postponement, in respect of the conviction.

(4) If during the period of postponement—

- (a) intimation is given by virtue of subsection (2) above by the person, the Court may, on the application of the prosecutor, extend that period to a date up to three months after the date of disposal of the appeal;
- (b) the case is remitted under subsection (5) of section 3 of this Act, the Court may, on such application, extend that period to a date up to three months after the case is transmitted under that subsection by the Court of Session or, if there is an appeal against the decision of the Court of Session on such remit, the date of disposal of that appeal.

3.—(1) For the purposes of this Act—

- (a) any payments or other rewards received by a person at any time (whether before or after the commencement of section 1 of this Act) in connection with drug trafficking carried on by him or another are his proceeds of drug trafficking, and
- (b) the value of his proceeds of drug trafficking is the aggregate of the values of the payments or other rewards.

Assessing the
proceeds of drug
trafficking.

(2) Without prejudice to section 4 of this Act the Court may, in making an assessment as regards a person under section 1(1) of this Act, make the following assumptions, except in so far as any of them may be shown to be incorrect in that person's case—

- (a) that any property appearing to the Court—
 - (i) to have been held by him at any time since his conviction, or
 - (ii) to have been transferred to him at any time since a date six years before his being indicted,

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was received by him, at the earliest time at which he appears to the Court to have held it, as a payment or reward in connection with drug trafficking carried on by him,

- (b) that any expenditure of his since the date mentioned in paragraph (a)(ii) above was met out of payments received by him in connection with drug trafficking carried on by him, and
- (c) that, for the purpose of valuing any property received or assumed to have been received by him at any time as such a reward, he received the property free of any other interests in it.

(3) Subsection (2) above does not apply if the only offence by virtue of which the assessment is being made is an offence under section 43 of this Act.

(4) The Court shall, in making an assessment as regards a person under section 1(1) of this Act, leave out of account any of his proceeds of drug trafficking that are shown to the court to have been taken into account in a case where a confiscation order (whether under this Act or under and within the meaning of—

1986 c. 32.

- (a) section 1 of the Drug Trafficking Offences Act 1986; or
- (b) any corresponding provision in Northern Ireland),

has previously been made against him.

(5) Where in making an assessment as regards a person under section 1(1) of this Act the Court at any stage is of the opinion that a difficult question of law or a question of fact of exceptional complexity is involved, it may of its own accord, or on the application of the prosecutor or of the person (or on their joint application), remit the case to the Court of Session for a decision as regards that question; and the Court of Session shall on deciding the question transmit the case to the High Court.

Statements
relating to drug
trafficking.
1975 c. 21.

4.—(1) Without prejudice to section 150 of the 1975 Act, where the prosecutor has, as regards a person, moved for an order under section 1(1) of this Act the prosecutor may lodge with the clerk of court a statement as to any matters relevant to the assessment of the value of that person's proceeds of drug trafficking and if the person accepts to any extent any allegation in the statement the Court may, for the purposes of that assessment, treat that acceptance as conclusive of the matters to which it relates.

(2) Where—

- (a) a statement is lodged under subsection (1) above, and
- (b) the Court is satisfied that a copy of that statement has been served on the person,

the Court may require the person to indicate, within such period as the Court may specify, to what extent he accepts each allegation in the statement and, in so far as he does not accept any such allegation, to indicate the basis of such non-acceptance.

(3) If the person fails in any respect to comply with a requirement under subsection (2) above, he may be treated for the purposes of this section as accepting every allegation in the statement apart from any allegation in respect of which he has complied with the requirement.

(4) Without prejudice to section 150 of the 1975 Act, where—

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- (a) there is lodged with the clerk of court by the person a statement as to any matters relevant to determining the amount that might be realised at the time the confiscation order is made, and
- (b) the prosecutor accepts to any extent any allegation in the statement,

the Court may, for the purposes of that determination, treat that acceptance as conclusive of the matters to which it relates.

(5) No acceptance by the person under this section that any payment or other reward was received by him in connection with drug trafficking carried on by him or another shall be admissible in evidence in any proceedings, whether in Scotland or elsewhere, in respect of an offence.

5.—(1) Subject to subsection (3) below, the following property is **Realisable property.**

- (a) the whole estate of a person suspected of, or charged with, an offence to which section 1 of this Act relates, being an offence in respect of which (either or both)—
 - (i) warrant to arrest and commit him has been granted;
 - (ii) a restraint order has been made against him; and
- (b) the whole estate of a person to whom any person whose whole estate is realisable by virtue of paragraph (a) above has (directly or indirectly and whether in one transaction or in a series of transactions) made an implicative gift,

if the proceedings as regards the offence have not been concluded.

(2) In subsection (1) above, “the whole estate of a person” means his whole estate, wherever situated, at the date on which, in respect of the suspected or charged person, the warrant to arrest and commit was granted, or on which the restraint order was made (whichever first occurs), and includes—

- (a) any income or estate vesting in the holder of the realisable property on that date; and
- (b) the capacity to exercise, and to take proceedings for exercising, such powers in, over or in respect of any property as might have been exercised by the holder of the realisable property for his own benefit as at that date.

(3) Property is not realisable if—

- (a) held on trust by a person mentioned in subsection (1)(a) or (b) above for a person not so mentioned; or
- (b) an order under—

(i) section 27 of the Misuse of Drugs Act 1971 (forfeiture orders), or

(ii) section 223 or 436 of the 1975 Act (forfeiture of property), or

(iii) section 43 of the Powers of Criminal Courts Act 1973 (deprivation orders), or

(iv) any other statutory provision providing specifically for forfeiture in relation to an offence,

is in force in respect of the property.

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(4) Subject to subsection (7) below, for the purposes of sections 1(1)(b) and 4(4)(a) of this Act, the amount that might be realised at the time a confiscation order is made in respect of a person is the total value at that time of all realisable property owned, and all implicative gifts which have been made, by him; except that where there are obligations having priority at that time the amount that might be realised is the aforesaid total value less the total amount payable in pursuance of those obligations.

(5) In assessing, for the purposes of section 1(1)(b) of this Act, the value—

(a) of realisable property (other than money) owned by a person in respect of whom it proposes to make a confiscation order, the High Court shall have regard to the market value of the property at the date on which the order would be made; but it may also have regard to any security or real burden which would require to be discharged in realising the property or to any other factors which might reduce the amount recoverable by such realisation;

(b) of an implicative gift, the Court shall, subject to section 6(2) and (3) of this Act, take it to be—

(i) the value of the gift when received, adjusted to take account of subsequent changes in the value of money, or

(ii) where subsection (6) below applies, the value there mentioned,

whichever is the greater.

(6) If at the date on which the order would be made the recipient holds—

(a) the property which he received (not being cash), or

(b) property which, in whole or in part, directly or indirectly represents in his hands the property which he received,

the value referred to in subsection (5)(b)(ii) above is, subject to section 6(2) and (3) of this Act, the value at that date of the property mentioned in paragraph (a) above or, as the case may be, of the property mentioned in paragraph (b) above so far as it represents the property which he received.

(7) Without prejudice to section 47(3) of this Act, the Court may, notwithstanding subsections (5)(b) and (6) above, for the purposes of section 1(1)(b) of this Act disregard the amount (or part of the amount) of an implicative gift if it considers it improbable that such amount (or part) could be realised.

(8) For the purposes of subsection (4) above, an obligation has priority at any time if it is an obligation of the person in respect of whom the confiscation order is made to—

(a) pay an amount due in respect of—

(i) a fine or order (not being a confiscation order or an order mentioned in sub-paragraph (ii) below) of a court, imposed or made on conviction of an offence, where the fine was imposed or order made before the confiscation order;

(ii) a compensation order (within the meaning of the Criminal Justice (Scotland) Act 1980), made on conviction of an offence, where such order was made before, or in the same proceedings as, the confiscation order; or

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1980 c. 62.

(b) pay any sum which would be included among—

(i) the preferred debts (as defined in section 51(2) of the 1985 Act) were his estate being sequestrated in accordance with the provisions of that Act and were the date on which the confiscation order would be made the date of sequestration;

1985 c. 66.

(ii) the preferential debts (within the meaning given by section 386 of the Insolvency Act 1986) in the person's bankruptcy or winding up were that bankruptcy commencing on the date of the confiscation order or as the case may be were the winding up under an order of the court made on that date.

1986 c. 45.

6.—(1) Subject to subsection (4) below, in this Part of this Act references to an "implicative gift" are references to a gift (whether made before or after the commencement of section 1 of this Act)—

Implicative gifts.

(a) made not more than six years before the date mentioned in section 5(2) of this Act; or

(b) made at any time if the gift was—

(i) of property received by the giver in connection with drug trafficking carried on by him or another, or

(ii) of property which, in whole or in part, directly or indirectly represented in the giver's hands property received by him in that connection.

(2) For the purposes of subsection (1) above, the circumstances in which a person is to be treated as making a gift shall include those of a case where he transfers an interest in property to another person, directly or indirectly, for a consideration significantly less than the value of that interest at the time of transfer. In subsection (3) below the said consideration is referred to as "consideration A" (or as "A") and the said value as "consideration B" (or as "B").

(3) In the case mentioned in subsection (2) above, section 5 of this Act shall apply as if the reference in sub-paragraph (i) of subsection (5)(b) of that section to "the value of the gift when received" were a reference to the amount by which consideration A is exceeded by consideration B and as if in sub-paragraph (ii) of the said subsection (5)(b) the reference to "the value there mentioned" were a reference to a value determined in accordance with the formula—

$$\frac{C(B-A)}{B}$$

where C is what the value referred to in the said sub-paragraph (ii) would be had the gift been an outright gift.

(4) A gift made for a charitable purpose to a person who is not an associate of the giver, being a gift which having regard to all the circumstances it was reasonable to make, is not an implicative gift.

(5) In subsection (4) above, "charitable purpose" means any charitable, benevolent or philanthropic purpose whether or not it is charitable within the meaning of any rule of law.

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Application of provisions relating to fines to enforcement of confiscation orders.

1975 c. 21.

1980 c. 43.

1981/1675 (N.I. 26.)

1986 c. 32.

1952 c. 61.

7.—(1) Sections 196 and 203 of the 1975 Act and, as applied by section 194 of that Act, the provisions of that Act specified in subsection (2) below shall, subject to the qualifications mentioned in subsection (2) below, apply in relation to confiscation orders as they apply in relation to fines; and section 91 of the Magistrates' Courts Act 1980 and Article 96 of the Magistrates' Courts (Northern Ireland) Order 1981 (provisions relating to transfer of fines from Scotland etc.) shall be construed accordingly.

(2) The provisions mentioned in subsection (1) above are—

section 396:

Provided that any allowance under that section (or section 397) of time (or further time) for payment shall be without prejudice to the exercise by any administrator appointed in relation to the confiscation order of his powers and duties under this Act; and the court may, pending such exercise, postpone any decision as to refusing or allowing time (or further time) for payment;

section 397;

section 398;

section 399:

Provided that any order of payment by instalments shall be without prejudice to such exercise as is above mentioned;

section 400;

section 401(2) and (3);

section 403, except that for the purposes of subsections (4) and (6) of that section "confiscation order" in subsection (1) above shall be construed as including such an order within the meaning of the Drug Trafficking Offences Act 1986 or of any corresponding provision in Northern Ireland;

section 404;

section 406;

section 407:

Provided that where a court imposes a period of imprisonment both in respect of a fine and of a confiscation order the amounts in respect of which the period is imposed shall, for the purposes of subsection (1A) of that section, be aggregated:

Provided also that before imposing a period of imprisonment to which there is a liability by virtue of that section the court shall, if an administrator has been appointed in relation to the confiscation order, require a report from him as to whether and in what way he is likely to exercise his powers and duties under this Act and shall take that report into account; and the court may, pending such exercise, postpone any decision as to such imposition;

section 408;

section 409, except that the reference in subsection (1) of that section to the person paying a sum to the governor of the prison under conditions prescribed by rules made under the Prisons (Scotland) Act 1952 shall be construed as including a reference to an administrator appointed in relation to the confiscation order making such payment under this Act in respect of the person;

section 411, except the proviso to subsection (3):

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Provided that an order for recovery by civil diligence shall not be made under the section where an administrator is appointed in relation to the confiscation order;

Schedule 7.

(3) Where in any proceedings an order has been made under section 1(1) of this Act as regards a person and a period of imprisonment or detention is imposed on him in default of payment of its amount (or as the case may be of an instalment thereof), that period shall run from the expiry of any other period of imprisonment or detention (not being one of life imprisonment or detention for life) imposed on him in the proceedings.

(4) The reference in subsection (3) above to "any other period of imprisonment or detention imposed" includes (without prejudice to the generality of the expression) a reference to such a period on default of payment of a fine (or instalment thereof); but only where that default has occurred before the warrant for imprisonment is issued for the default in relation to the order.

Restraint orders and interdict

8.—(1) Where—

Cases in which
restraint orders
may be made.

(a) warrant to arrest and commit a person suspected of or charged with an offence to which section 1 of this Act relates has been granted and either—

(i) notice has been served on him calling upon him to appear at a trial diet in the High Court or at a diet of that Court fixed for the purposes of section 102 of the 1975 Act (whether or not the trial has commenced, provided that the proceedings as regards the offence have not been concluded); or

(ii) the Court of Session is satisfied that it is intended that any trial diet in respect of the suspected offence (or as the case may be the offence with which he has been charged) shall proceed in the High Court; or

(b) the Court of Session is satisfied that a procurator fiscal proposes to petition within twenty-eight days for warrant to arrest and commit a person suspected of such an offence, that the suspicion is reasonable and that it is intended that any trial diet in respect of the suspected offence shall proceed in the High Court; or

(c) an interlocutor has been pronounced under section 104(1)(b) of the 1975 Act remitting a person to the High Court for sentence in respect of such an offence,

the Court of Session may, on the application of the Lord Advocate, make in respect of the person such order (in this Act referred to as a "restraint order") as is described in section 9 of this Act. Any such application shall be heard in chambers.

(2) Subject to subsection (3) below, the Court of Session may, at the instance of—

(a) the Lord Advocate, at any time vary or recall a restraint order in relation to any person or to any property;

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(b) any person having an interest, at any time vary or recall a restraint order in relation to the person or to any property; and in particular may, on the application of a person named in a restraint order as having received an implicative gift, recall the order in relation to that person if satisfied—

(i) that he received the gift not knowing, not suspecting and not having reasonable grounds to suspect that the giver was in any way concerned in drug trafficking; and

(ii) that he is not, and has never been, an associate of the giver; and

(iii) that he would suffer hardship were the order not to be recalled.

(3) The Court of Session may, where it has recalled a restraint order under subsection (2) above, order that property of the person at whose instance it was recalled shall cease to be realisable.

(4) Rules of court may provide that any application under subsection (2) above shall be made within such period of the applicant receiving notice of the restraint order as may be specified in the rules; and in the period between such application and any decision of the Court as regards recalling that order the powers of any administrator appointed as regards property of the applicant shall be subject to the restriction that the administrator shall not realise the property.

(5) Where, a restraint order having been made by virtue of—

(a) paragraph (b) of subsection (1) above, the days mentioned in that paragraph expire without the petition having been presented; or

(b) paragraph (a), (b) or (c) of that subsection, the proceedings as regards the offence are concluded,

the Lord Advocate shall forthwith apply to the Court of Session for recall of that order and the Court shall grant the application.

Restraint orders.

9.—(1) A restraint order is an order interdicting—

(a) the person in respect of whom it is made from dealing with his realisable property; or

(b) that person and any person named in the order as appearing to the Court of Session to have received from him an implicative gift from dealing with their own, or the other's, realisable property,

(whenever that property was acquired and whether it is described in the order or not); but, subject to subsection (5) below, the order may contain conditions and exceptions to which such interdict shall be subject.

(2) A restraint order shall provide for notice to be given to persons affected by the order.

(3) In subsection (1) above, the reference to “dealing with” property shall (without prejudice to the generality of the expression) be construed as including a reference—

(a) to making a payment in reduction of the amount of a debt; and

(b) to removing the property from Great Britain.

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(4) If the restraint order is made by virtue of section 8(1)(b) of this Act, references in the foregoing provisions of this section to "realisable property" shall, in relation to any period before warrant to arrest and commit the person in respect of whom it was made is granted, be construed as references to property which would be realisable property had such warrant been granted immediately before the commencement of that period.

(5) Without prejudice to the generality of subsection (1) above, property in so far as it comprises reasonable legal expenses payable in relation to proceedings as regards the offence by virtue of which the restraint order has been made or as regards a confiscation order made on conviction thereof shall be excepted under that subsection from the interdict.

10.—(1) A constable or a person commissioned by the Commissioners of Customs and Excise may, for the purpose of preventing realisable property of a person subject to a restraint order (whether under this Act or under and within the meaning of the Drug Trafficking Offences Act 1986) from being removed from Great Britain, seize the property.

Seizure of
property affected
by restraint order.
1986 c.32.

(2) Property seized under subsection (1) above shall be dealt with in accordance with the directions of the court which made the order.

11.—(1) On the application of the Lord Advocate, the Court of Session may, in respect of—

Inhibition and
arrestment of
property affected
by restraint order
or by interdict
under section 12.

(a) heritable realisable property in Scotland affected by a restraint order (whether such property generally or particular such property) grant warrant for inhibition against any person interdicted by the order or, in relation to that property, under section 12 of this Act;

(b) moveable realisable property so affected (whether such property generally or particular such property) grant warrant for arrestment if the property would be arrestable were the person entitled to it a debtor;

and, subject to the provisions of this Part of this Act, the warrant—

(i) shall have effect as if granted on the dependence of an action for debt at the instance of the Lord Advocate against the person and may be executed, recalled, loosed or restricted accordingly;

(ii) where granted under subsection (1)(a) above, shall have the effect of letters of inhibition and shall forthwith be registered by the Lord Advocate in the register of inhibitions and adjudications.

(2) Section 155 of the Titles to Land Consolidation (Scotland) Act 1868 (effective date of inhibition) shall apply in relation to an inhibition for which warrant has been granted under subsection (1)(a) above as that section applies to an inhibition by separate letters or contained in a summons.

31 & 32 Vict.
c.101.

(3) In the application of section 158 of the said Act of 1868 (recall of inhibition) to such inhibition as is mentioned in subsection (2) above, references in that section to a particular Lord Ordinary shall be construed as references to any Lord Ordinary.

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(4) That an inhibition or arrestment has been executed under subsection (1) above in respect of property shall not prejudice the exercise of an administrator's powers under or for the purposes of this Part of this Act in respect of that property.

(5) No inhibition or arrestment executed under subsection (1) above shall have effect once, or in so far as, the restraint order affecting the property in respect of which the warrant for such inhibition or arrestment has been granted has ceased to have effect in respect of that property; and the Lord Advocate shall—

- (a) apply for the recall, or as the case may be restriction, of the inhibition or arrestment accordingly; and
- (b) ensure that recall, or restriction, of an inhibition on such application is reflected in the register of inhibitions and adjudications.

1986 c.32.

(6) The foregoing provisions of this section shall apply in relation to an order made under section 8 of the Drug Trafficking Offences Act 1986 and registered under section 28 of this Act (a "relevant order") as they apply to a restraint order; but as if—

- (a) for any reference to the Lord Advocate there were substituted a reference to the prosecutor or, in a case where the order was made by virtue of subsection (2) of section 7 of that Act and the information mentioned in that subsection has not yet been laid, to the person as regards whom the court which made the order was satisfied as is mentioned in subsection (3)(b) of that section;
- (b) any reference to realisable property fell to be construed in accordance with section 5 of that Act (references in that section to the defendant, and to the time at which proceedings were instituted against him, being in such case as is mentioned in paragraph (a) above taken to be, respectively, references to the person as regards whom the court which made the order was satisfied as is mentioned in subsection (2) of the said section 7 and to the time immediately before the order was made);
- (c) for any reference to a restraint order there were substituted a reference to a relevant order;
- (d) in subsection (1)(a), for the words "interdicted by the order or, in relation to that property, under section 12 of this Act" there were substituted the words "with an interest in that property";
- (e) in subsection (1), for the words "Part of this Act" there were substituted the word "section";
- (f) in subsection (1)(i), after the word "and" there were inserted the words "subject to subsection (3A) below";
- (g) after subsection (3) there were inserted the following subsection—

"(3A) Any power of the Court of Session to recall, loose or restrict inhibitions or arrestments shall, in relation to an inhibition or arrestment proceeding upon a warrant under this section and without prejudice to any other consideration lawfully applying to the exercise of the power, be exercised with a view to achieving the purposes specified in section 13 of the Drug Trafficking Offences Act 1986."; and

(h) in subsection (4)—

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(i) for the reference to an administrator there were substituted a reference to a receiver; and

(ii) for the words "this Part of this Act" there were substituted the words "section 8, 11 or 12 of the said Act of 1986".

12.—(1) The Court of Session may, where it has granted a restraint order, interdict a person not subject to that order from dealing with realisable property affected by it while it is in force; and the clerk of court shall, on the restraint order being recalled, forthwith so inform each person so interdicted.

Interdict of person
not subject to
restraint order.

(2) Subsection (2) of section 8 of this Act applies in relation to an interdict under subsection (1) above as the said subsection (2) applies in relation to a restraint order; and subsection (3) of section 9 thereof applies in relation to subsection (1) above as the said subsection (3) applies in relation to subsection (1) of the said section 9.

(3) An interdict under subsection (1) above shall not be effective against a person unless and until he is served with a copy both of it and of the restraint order.

Administrators

13.—(1) On the application of the Lord Advocate the Court of Session may as regards realisable property— Administrators.

(a) affected by a restraint order, appoint a person to manage, or otherwise deal with, the property; or

(b) where a confiscation order has been made, appoint a person (or empower an appointee under paragraph (a) above) to realise the property,

in accordance with the Court's directions and may (whether on making the appointment or from time to time) require any person having possession of the property to give possession of it to the appointee (any such appointee being in this Act referred to as an "administrator").

(2) A requirement under subsection (1) above—

(a) subject to paragraph (b) below, may relate to the property generally or to particular such property and may be subject to such exceptions and conditions as may be specified by the Court;

(b) shall relate to property mentioned in paragraph (b) of section 5(1) of this Act only if expressly stated so to do and then only in so far as the person in whom such property is vested is named in the requirement as being subject to it.

(3) On a requirement being imposed under subsection (1) above—

(a) the clerk of court shall forthwith so notify—

(i) the person in respect of whom the restraint order, or as the case may be the confiscation order, has been made; and

(ii) any other person named in the requirement as being subject to it; and

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- (b) any dealing of or with such person in relation to the property shall be of no effect in a question with the administrator unless whoever dealt with the person had, at the time when the dealing occurred, no knowledge of the appointment.

(4) The Court of Session, at the instance of any person having an interest, may at any time—

- (a) vary or withdraw a requirement imposed under subsection (1) above; or
- (b) without prejudice to section 16 of this Act or to the powers and duties of an administrator pending a decision under this paragraph, on cause shown, remove the administrator from office.

(5) On the death or resignation of the administrator, or on his removal from office under subsection (4)(b) above or section 17 of this Act, the Court of Session shall appoint a new administrator. Such of the property (if any) as was, by virtue of section 14(3) of this Act, vested in the administrator who has died, resigned or been removed shall forthwith vest in the new administrator; and any requirement imposed under subsection (1) above shall, on the person subject to the requirement being notified in writing of the appointment by the appointee, apply in relation to the appointee instead of in relation to his predecessor.

(6) The administration of property by an administrator shall be deemed continuous notwithstanding any temporary vacancy in that office.

(7) Any appointment under this section shall be on such conditions as to caution as the accountant of court may think fit to impose; but the premium of any bond of caution or other security thereby required of the administrator shall be treated as part of his outlays in his actings as such.

52 & 53 Vict.
c. 39.

(8) Without prejudice to section 17 of this Act, section 6 of the Judicial Factors (Scotland) Act 1889 (supervision of judicial factors) shall not apply in relation to an appointment under this section.

Functions of
administrators.

14.—(1) Subject to section 17 of this Act, an administrator—

- (a) shall be entitled to take possession of, and if appointed (or empowered) under paragraph (b) of section 13(1) of this Act shall as soon as practicable take possession of, the property as regards which he has been appointed and of any document which both—

(i) is in the possession or control of the person (in this section referred to as “A”) in whom the property is vested (or would be vested but for an order made under subsection (3) of this section); and

(ii) relates to the property or to A’s assets, business or financial affairs;

- (b) shall be entitled to have access to, and to copy, any document relating to the property or to A’s assets, business or financial affairs and not in such possession or control as is mentioned in paragraph (a) above;

- (c) may bring, defend or continue any legal proceedings relating to the property and, without prejudice to the generality of this paragraph, may sist himself in any case in the Court of Session

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which has been remitted under section 3(5) of this Act if the restraint order by virtue of which the administrator has been appointed interdicts the person whose case has been so remitted from dealing with the property;

- (d) may borrow money in so far as it is necessary to do so to safeguard the property and may for the purposes of such borrowing create a security over any part of the property;
- (e) may, if the administrator considers that to do so would be beneficial for the management or realisation of the property—
 - (i) carry on any business of A;
 - (ii) exercise any right of A as holder of securities in a company;
 - (iii) grant a lease of the property or take on lease any other property; or
 - (iv) enter into any contract, or execute any deed, as regards the property or as regards A's business;
- (f) may, where any right, option or other power forms part of A's estate, make payments or incur liabilities with a view to—
 - (i) obtaining property which is the subject of; or
 - (ii) maintaining,
the right, option or power;
- (g) may effect or maintain insurance policies as regards the property or A's business;
- (h) may, where A has an uncompleted title to any heritable estate, complete title thereto:

Provided that completion of title in A's name shall not validate by accretion any unperfected right in favour of any person other than the administrator;
- (j) may sell, purchase or exchange property or discharge any security for an obligation due to A:

Provided that it shall be incompetent for the administrator or an associate of his to purchase any of A's property in pursuance of this paragraph;
- (k) may claim, vote and draw dividends in the sequestration of the estate (or bankruptcy or liquidation) of a debtor of A and may accede to a voluntary trust deed for creditors of such a debtor;
- (l) may discharge any of his functions through agents or employees:

Provided that the administrator shall be personally liable to meet the fees and expenses of any such agent or employee out of such remuneration as is payable to the administrator by virtue of section 18(1) and (3) of this Act;
- (m) may take such professional advice as he may consider requisite for the proper discharge of his functions;
- (n) may at any time apply to the Court of Session for directions as regards the discharge of his functions;
- (o) may exercise any power specifically conferred on him by the Court of Session, whether such conferral was at the time of his appointment or on his subsequent application to the Court in that regard; and

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(p) may do anything incidental to the above powers and duties.

(2) Subject to the proviso to paragraph (j) of subsection (1) above—

- (a) a person dealing with an administrator in good faith and for value shall not require to determine whether the administrator is acting within the powers mentioned in that subsection; and
- (b) the validity of any title shall not be challengeable by reason only of the administrator having acted outwith those powers.

(3) The exercise of a power mentioned in any of paragraphs (c) to (k) above shall be in A's name except where and in so far as an order made by the Court of Session under this subsection (either on its own motion or on the application of the administrator) has vested the property in the administrator (or in his predecessor in that office).

Money received
by administrator.

15.—(1) Subject to subsection (2) below, all money received by an administrator in the exercise of his functions shall be deposited by him, in the name (unless vested in the administrator by virtue of subsection (3) of section 14 of this Act) of the holder of the property realised, in an appropriate bank or institution.

(2) The administrator may at any time retain in his hands a sum not exceeding £200 or such other sum as may be prescribed by the Secretary of State by regulations made by statutory instrument.

1979 c. 37.

(3) In subsection (1) above, "appropriate bank or institution" means a bank or institution mentioned in section 2(1) of the Banking Act 1979 or for the time being specified in Schedule 1 to that Act.

Application of
proceeds of
realisation and
other sums.

16.—(1) Subject to subsection (2) below, sums in the hands of an administrator which are—

- (a) proceeds of a realisation of property under section 13 of this Act, and
- (b) other property held by the person in respect of whom the confiscation order was made,

shall first be applied in payment of such expenses as are payable under section 37(2) of this Act and then shall, after such payments (if any) as the Court of Session may direct have been made out of those proceeds and sums, be applied on the person's behalf towards the satisfaction of the confiscation order.

(2) If, after the amount payable under the confiscation order has been fully paid, any such proceeds and sums remain in the hands of the administrator, he shall distribute them—

- (a) among such of those who held property which has been realised under this Act, and
- (b) in such proportions,

as the Court of Session may, after giving such persons an opportunity to be heard as regards the matter, direct.

(3) The receipt of any sum by a sheriff clerk on account of an amount payable under a confiscation order shall reduce the amount so payable, but the sum—

- (a) if not paid by an administrator under subsection (1) above, shall first be applied in payment of such expenses as are payable under section 37(2) of this Act;

- (b) if so paid, shall first be applied in payment of the administrator's remuneration and expenses, **PART I**

- (c) subject to paragraphs (a) and (b) above, shall be applied in reimbursement of any sums paid by the Lord Advocate under section 20(2) of this Act,

and the balance shall be payable and recoverable (or as the case may be disposed of) under section 203 of the 1975 Act (fines payable to H.M. Exchequer) as applied by section 7 of this Act. **1975 c. 21.**

17.—(1) The accountant of court shall supervise the performance by administrators of the functions conferred on them by this Act; and in particular an administrator proposing to exercise functions conferred by any of paragraphs (c) to (p) of subsection (1) of section 14 of this Act shall first obtain the consent of the accountant of court to such exercise. **Supervision of administrators.**

(2) If it appears to the accountant of court that an administrator has, without reasonable cause, failed to perform a duty imposed on him by any provision of this Part of this Act, he shall report the matter to the Court of Session which, after giving the administrator an opportunity to be heard as regards the matter, may remove the administrator from office, censure him or make such other order as the circumstances of the case may appear to the Court to require.

18.—(1) The administrator shall keep such accounts in relation to his intromissions with the property as regards which he is appointed as the Court of Session may require and shall lodge these accounts with the accountant of court at such times as may be fixed by the Court in that regard; and the accountant of court shall audit the accounts and issue a determination as to the amount of outlays and, on the basis mentioned in subsection (3) below, remuneration payable to the administrator in respect of those intromissions. **Accounts and remuneration of administrator.**

(2) Not later than two weeks after the issuing of a determination under subsection (1) above, the administrator or the Lord Advocate may appeal against it to the Court of Session.

(3) The basis for determining the amount of remuneration payable to the administrator shall be the value of the work reasonably undertaken by him, regard being had to the extent of the responsibilities involved.

(4) The accountant of court may authorise the administrator to pay without taxation an account in respect of legal services incurred by the administrator.

19. Without prejudice to section 11 of this Act—

- (a) no arrestment or poinding of realisable property executed on or after an appointment as regards the property under section 13 of this Act shall be effectual to create a preference for the arrester or poinder and any such property so arrested or poinded, or the proceeds of sale thereof, shall be handed over to the administrator;
- (b) no poinding of the ground in respect of realisable property on or after such appointment shall be effectual in a question with the administrator except for the interest on the debt of a secured creditor, being interest for the current half-yearly term and arrears of interest for one year immediately before the commencement of that term;

Effect of appointment under section 13 on diligence.

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(c) it shall be incompetent on or after such appointment for any other person to raise or insist in an adjudication against the realisable property or to be confirmed as executor-creditor on that property; and

(d) no inhibition on realisable property which takes effect on or after such appointment shall be effectual to create a preference for the inhibitor in a question with the administrator.

Further provision
as to
administrators.

20.—(1) Where an administrator takes any action—

(a) in relation to property which is not realisable property, being action which he would be entitled to take if it were such property,

(b) believing, and having reasonable grounds for believing, that he is entitled to take that action in relation to that property,

he shall not be liable to any person in respect of any loss or damage resulting from his action except in so far as the loss or damage is caused by his negligence.

(2) Any amount due in respect of the remuneration and expenses of an administrator so appointed shall, if no sum is available to be applied in payment of it under section 16(3)(b) of this Act, be paid by the Lord Advocate.

Discharge of
administrator.

21. After an administrator has lodged his final accounts under section 18(1) of this Act, he may apply to the accountant of court to be discharged from office; and such discharge, if granted, shall have the effect of freeing him from all liability (other than liability arising from fraud) in respect of any act or omission of his in exercising the functions conferred on him by this Act.

Rules of court as
regards
accountant of
court's supervision
etc. of
administrators.
1933 c. 41.

22. Without prejudice to section 16(i) of the Administration of Justice (Scotland) Act 1933 (power, in relation to certain statutory powers and duties, to regulate procedure etc. by Act of Sederunt), provision may be made by rules of court as regards (or as regards any matter incidental to) the accountant of court's powers and duties under this Act in relation to the functions of administrators.

Exercise of powers

Exercise of powers
by Court of
Session or
administrator.

23.—(1) The following provisions apply to the powers conferred on the Court of Session by sections 8, 11(1) to (5), 12 to 13, 16 and 24 of this Act, or on an administrator appointed under subsection (1) of the said section 13.

(2) Subject to the following provisions of this section, the powers shall be exercised with a view to making available for satisfying a confiscation order the value for the time being of realisable property held by any person by the realisation of such property.

(3) In the case of a person who holds realisable property by virtue only of having received an implicative gift, the powers shall, so far as is reasonably attainable, be exercised so as to realise, interdict dealing with, or permit the seizure or taking possession of, property of a value no greater than the value for the time being of that gift.

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(4) The powers shall be exercised with a view to allowing any person other than one mentioned in paragraph (a) or (b) of section 5(1) of this Act to retain or recover the value of any property held by him.

(5) An order may be made or other action taken in respect of a debt owed by the Crown.

(6) Subject to subsection (4) above and without prejudice to the power of the Court of Session to make an exception under section 9(1) or 13(2)(a) of this Act for the protection of a person or his family, in exercising those powers no account shall be taken of any obligation (other than an obligation having priority, within the meaning of section 5(8) of this Act) of a person holding realisable property if that obligation conflicts with the obligation to satisfy a confiscation order.

(7) Subsections (2) to (6) of section 13 of the Drug Trafficking Offences Act 1986 (exercise of powers by High Court etc.) shall apply as regards the powers conferred on the Court of Session by sections 27 and 28, or by virtue of section 11(6), of this Act as those subsections apply as regards the powers conferred on the High Court (within the meaning that expression has in relation to England and Wales) by the sections mentioned in subsection (1) of the said section 13. 1986 c. 32.

24.—(1) Without prejudice to any enactment or rule of law in respect of the recording of deeds relating to heritable property or the registration of interests therein, the Court of Session, to facilitate realisation under section 13 of this Act, may— Power to facilitate realisation.

(a) order any person (in this section referred to as “A”) holding an interest in property, not being such person (in this section referred to as “B”) as is mentioned in paragraph (a) or (b) of section 5(1) of this Act, to make such payment to an administrator appointed to realise estate comprising an interest of B in that property as the Court may direct and may, subject to such payment being made—

(i) authorise the administrator to transfer B’s interest to A or to discharge it in favour of A; or

(ii) itself by order so transfer or discharge B’s interest; or

(b) by order—

(i) transfer A’s interest to B; or

(ii) discharge it in favour of B,

on the administrator making such payment to A out of that estate in respect of A’s interest as the Court may direct.

(2) The Court may make such incidental provision in relation to any exercise of powers conferred on it by subsection (1) above as it considers appropriate; but it shall not exercise those powers without giving such persons as hold an interest in the property reasonable opportunity to make representations to it in that regard.

Variation of confiscation orders

25.—(1) If, on an application by a person in respect of whom a confiscation order has been made, the Court of Session is satisfied that the realisable property is inadequate for the payment of any amount remaining to be recovered under that order, the Court shall issue a certificate to that effect giving the Court’s reasons for being so satisfied. Variation of confiscation order.

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(2) For the purposes of subsection (1) above the Court of Session—

- (a) in the case of realisable property held by a person whose estate has been sequestrated, or who has been adjudged bankrupt in England and Wales or in Northern Ireland, shall take into account the extent to which any property held by him may be distributed among creditors; and
- (b) may disregard any inadequacy in the realisable property if that inadequacy appears to the Court to be attributable wholly or partly to anything done by the person for the purpose of preserving such property from realisation under this Act.

(3) Where a certificate has been issued under subsection (1) above, the person may apply to the High Court for the amount to be recovered under the order to be reduced.

(4) The High Court shall, on an application under subsection (3) above—

- (a) substitute for the amount to be recovered under the order such lesser amount as the High Court thinks just in all the circumstances of the case; and
- (b) substitute for any period of imprisonment imposed under section 407 of the 1975 Act (or period of detention imposed under section 415(2) of that Act by virtue of the said section 407) in respect of the amount to be recovered under the order a shorter period, determined in accordance with subsection (1A) of the said section 407 (as it has effect by virtue of section 7 of this Act), in respect of the lesser amount.

1975 c. 21.

*Compensation***Compensation.**

26.—(1) Subject to subsection (2) below, if proceedings are instituted against a person for an offence to which section 1 of this Act relates and either—

- (a) the proceedings do not result in his conviction for any such offence, or
- (b) where he is convicted of one or more such offences, the conviction or convictions concerned are quashed (and no conviction for any such offence is substituted),

the Court of Session may, on an application by a person who held property which was realisable property, order compensation to be paid to the applicant; but this subsection is without prejudice to any right which may otherwise exist to institute proceedings in respect of delictual liability disclosed by such circumstances as are mentioned in paragraphs (a) and (b) of that subsection.

(2) The Court of Session shall not order compensation to be paid under subsection (1) above in any case unless satisfied—

- (a) that there has been some serious default on the part of a person concerned in the investigation of the offence or offences concerned, being a person mentioned in subsection (4) below, and that, but for that default, the proceedings would not have been instituted or continued; and

- (b) that the applicant has suffered substantial loss or damage in consequence of anything done in relation to the property under section 8, 11, 12, 13 or 24 of this Act or by virtue of section 24A of the Drug Trafficking Offences Act 1986 (recognition and enforcement in England and Wales of orders and functions under this part of this Act).

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1986 c. 32.

(3) The amount of compensation to be paid under this section shall be such as the Court of Session thinks just in all the circumstances of the case.

(4) Compensation payable under this section shall be paid, where the person in default was—

- (a) a constable of a police force, by the police authority or joint police committee for the police area for which that force is maintained ("constable", "police force", "police authority", "joint police committee" and "police area" having the meanings assigned to these terms by the Police (Scotland) Act 1967);
- (b) a constable other than is mentioned in paragraph (a) above, but with the powers of such a constable, by the body under whose authority he acts;
- (c) a procurator fiscal or was acting on behalf of the Lord Advocate, by the Lord Advocate; and
- (d) a person commissioned by the Commissioners of Customs and Excise, by those Commissioners.

1967 c. 77.

Reciprocal arrangements for enforcement of confiscation orders

27.—(1) An order to which this section applies shall, subject to this section and section 28 of this Act, have effect in the law of Scotland but shall be enforced in Scotland only in accordance with this section and that section.

Recognition and enforcement of orders under Drug Trafficking Offences Act 1986.

(2) A receiver's functions under or for the purposes of section 8, 11 or 12 of the Drug Trafficking Offences Act 1986 shall, subject to this section and section 28 of this Act, have effect in the law of Scotland.

(3) If an order to which this section applies is registered under this section—

- (a) the Court of Session shall have, in relation to its enforcement, the same power,
- (b) proceedings for or with respect to its enforcement may be taken, and
- (c) proceedings for or with respect to any contravention of such an order (whether before or after such registration) may be taken, as if the order had originally been made in that Court.

(4) Nothing in this section enables any provision of an order which empowers a receiver to do anything in Scotland under section 11(3)(a) of the said Act of 1986 to have effect in the law of Scotland.

(5) The orders to which this section applies are orders of the High Court (within the meaning that expression has in relation to England and Wales)—

- (a) made under section 8, 11, 12 or 30 of the said Act of 1986,
- (b) relating to the exercise by that Court of its powers under those sections, or

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- (c) relating to receivers in the performance of their functions under section 8, 11 or 12 of that Act,

but not including an order in proceedings for enforcement of any such order.

(6) References in this section to an order under section 8 of the said Act of 1986 include references to a discharge under section 7(4) of that Act of such an order.

(7) In this section and in section 28 of this Act, "order" means any order, direction or judgment (by whatever name called).

(8) Nothing in any order of the High Court (within the meaning mentioned in subsection (5) above) under section 11(6) of the said Act of 1986 prejudices any enactment or rule of law in respect of the recording of deeds relating to heritable property in Scotland or the registration of interests in such property.

Provisions
supplementary to
section 27.

28.—(1) The Court of Session shall, on application made to it in accordance with rules of court for registration of an order to which section 27 of this Act applies, direct that the order shall, in accordance with such rules, be registered in that Court.

(2) Subsections (1) and (3) of section 27 of this Act and subsection (1) above are subject to any provision made by rules of court—

- (a) as to the manner in which and conditions subject to which orders to which that section applies are to be enforced in Scotland,
- (b) for the sisting of proceedings for enforcement of such an order,
- (c) for the modification or cancellation of the registration of such an order if the order is modified or revoked or ceases to have effect.

(3) This section and section 27 of this Act are without prejudice to any enactment or rule of law as to the effect of notice or the want of it in relation to orders of the High Court (within the meaning mentioned in section 27(5) of this Act).

1972 c. 59.

1986 c. 32.

(4) The Court of Session shall have the like power to make an order under section 1 of the Administration of Justice (Scotland) Act 1972 (extended power to order inspection of documents etc.) in relation to proceedings brought or likely to be brought under the Drug Trafficking Offences Act 1986 in the High Court (within the meaning mentioned in section 27(5) of this Act) as if those proceedings had been brought or were likely to be brought in the Court of Session.

(5) The Court of Session may, additionally, for the purpose of—

- (a) assisting the achievement in Scotland of the purposes of orders to which section 27 of this Act applies, or
- (b) assisting receivers performing functions there under or for the purposes of section 8, 11 or 12 of the said Act of 1986,

make such orders and do otherwise as seems to it appropriate.

1986 c. 32.

(6) A document purporting to be a copy of an order under or for the purposes of the Drug Trafficking Offences Act 1986 by the High Court (within the meaning mentioned in section 27(5) of this Act) and to be certified as such by a proper officer of that Court shall, in Scotland, be sufficient evidence of the order.

29.—(1) Her Majesty may by Order in Council provide that, for the purposes of sections 8 to 25 and 33 to 35 of this Act, this Act shall have effect as if—

PART I
Enforcement of
Northern Ireland
orders.

- (a) references to confiscation orders included a reference to orders made by courts in Northern Ireland which appear to Her Majesty to correspond to confiscation orders;
- (b) references to offences to which section 1 of this Act relates included a reference to any offence under the law of Northern Ireland (not being an offence to which that section relates) which appears to Her Majesty to correspond to such an offence; and
- (c) such other modifications were made as may be specified in the Order in Council, being modifications which appear to Her Majesty to be requisite or desirable having regard to procedural differences which may for the time being exist between Scotland and Northern Ireland; and without prejudice to the generality of this paragraph modifications may include provision as to the circumstances in which proceedings in Northern Ireland are to be treated for the purposes of those sections as instituted or as concluded.

(2) An Order in Council under this section may provide for the sections mentioned in subsection (1) above to have effect in relation to anything done or to be done in Northern Ireland subject to such further modifications as may be specified in the order.

(3) An Order in Council under this section may contain such incidental, consequential and transitional provisions as Her Majesty considers expedient.

(4) An Order in Council under this section shall not be made unless a draft of the order has been laid before Parliament and approved by resolution of each House of Parliament.

30.—(1) Her Majesty may by Order in Council apply this section to any order made after the Order in Council comes into force by a court of a country or territory outside the United Kingdom, being an order—

Enforcement of
other external
orders.

- (a) of a description specified in the Order in Council, and
- (b) made for the purpose of recovering payments or other rewards received in connection with drug trafficking or their value.

(2) An order to which this section applies is referred to below in this section as an "external confiscation order"; and in this Act "designated country" means a country or territory outside the United Kingdom designated by an Order in Council under this section or under section 32 of this Act.

(3) Subject to subsection (4) below, the Court of Session may, on an application by or on behalf of the government of a designated country, register an external confiscation order made there.

(4) The Court of Session shall not register an external confiscation order unless the Court—

- (a) is satisfied that at the time of registration the order is in force in the designated country and is not subject to appeal in that country;

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- (b) is satisfied, where the person in respect of whom the order is made did not appear in the proceedings, that he received notice of the proceedings in sufficient time to enable him to defend them; and
- (c) is of the opinion that enforcing the order in Scotland would not be contrary to the interests of justice.

(5) The Court of Session shall cancel the registration of an external confiscation order if it appears to the Court that the order has been satisfied (whether by payment of the amount due under the order, by the person in respect of whom the order is made serving imprisonment in default, or otherwise).

(6) In relation to an external confiscation order registered under this section, sections 8 to 25 and 33 to 35 of this Act shall have effect subject to such modifications as may be specified in an Order in Council under this section as they have effect in relation to a confiscation order.

(7) In subsection (4) above, "appeal" includes—

- (a) any proceedings by way of discharging or setting aside a judgement; or
- (b) an application for a new trial or a stay of execution.

(8) In any case where the Court of Session is satisfied, on an application by or on behalf of the government of a designated country, either—

- (a) that proceedings which might result in an external confiscation order being made against a person have been instituted in the designated country and have not been concluded; or
- (b) that such institution is imminent,

sections 8 and 10 to 12 of this Act shall have effect in relation to those proceedings—

(i) where paragraph (a) above applies, as they would have effect in relation to proceedings instituted in Scotland against that person for an offence to which section 1 of this Act relates, being proceedings which have not been concluded and, where paragraph (b) above applies, as if the imminence of institution satisfied the Court of Session of the circumstances mentioned in subsection (1)(b) of the said section 8; and

(ii) as if references to a confiscation order were references to an external confiscation order and references to an application by the Lord Advocate were references to an application by or on behalf of that government; and

(iii) subject to such other modifications as may be specified in an Order in Council under this section.

(9) An Order in Council under this section may include such provision as Her Majesty considers expedient—

- (a) as to evidence or proof of any matter for the purposes of this section; and
- (b) as to the circumstances in which for those purposes—
 - (i) proceedings are to be treated as instituted or concluded;
 - or

(ii) the institution of proceedings is to be treated as imminent or such circumstances as are mentioned in paragraph (a) of section 8(5) of this Act are to be treated as having occurred.

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(10) An Order in Council under this section may contain such incidental, consequential and transitional provisions as Her Majesty considers expedient.

(11) An Order in Council under this section may make different provision for different cases or classes of case.

(12) An Order in Council under this section shall not be made unless a draft of the order has been laid before Parliament and approved by resolution of each House of Parliament.

31. The following section shall be inserted before section 25 of the Drug Trafficking Offences Act 1986—

Enforcement in
England and
Wales.

"Recognition
and
enforcement of
orders and
functions under
Part I of the
Criminal Justice
(Scotland) Act
1987.

24A.—(1) Her Majesty may by Order in Council make such provision as Her Majesty considers expedient for the purpose—

(a) of enabling property in England and Wales which is realisable property for the purposes of Part I of the Criminal Justice (Scotland) Act 1987 to be used or realised for the payment of any amount payable under a confiscation order made under that Part of that Act; and

(b) of securing that, where no confiscation order has been made under that Part of that Act, property in England and Wales which is realisable property for the purposes of that Part of that Act is available, in the event that such an order is so made, to be used or realised for the payment of any amount payable under it.

(2) Without prejudice to the generality of the power conferred by subsection (1) above, an Order in Council under this section may—

(a) provide that, subject to any specified conditions—

(i) the functions of a person appointed under section 13 of the Criminal Justice (Scotland) Act 1987; and

(ii) such descriptions of orders made under or for the purposes of Part I of the Criminal Justice (Scotland) Act 1987 as may be specified;

shall have effect in the law of England and Wales;

(b) make provision—

(i) for the registration in the High Court of such descriptions of orders made under or for the purposes of that Part of that Act as may be specified; and

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(ii) for the High Court to have in relation to the enforcement of orders made under or for the purposes of that Part of that Act which are so registered such powers as may be specified; and

(c) make provision as to the proof in England and Wales of orders made under or for the purposes of that Part of that Act.

(3) In subsection (2) above "specified" means specified in an Order in Council under this section.

(4) An Order in Council under this section may amend or apply, with or without modifications, any enactment.

(5) An Order in Council under this section may contain such incidental, consequential and transitional provisions as Her Majesty considers expedient.

(6) An Order in Council under this section shall not be made unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament."

Order in Council as regards taking of action in designated country.

32.—(1) Her Majesty may by Order in Council make such provision in connection with the taking of action in a designated country in consequence of the making of a restraint order or of a confiscation order as appears to Her Majesty to be expedient; and without prejudice to the generality of this subsection such provision may include a direction that in such circumstances as may be specified proceeds arising out of action taken in that country with a view to satisfying a confiscation order which are retained there shall nevertheless be treated as reducing the amount payable under the confiscation order to such extent as may be specified.

(2) Subsections (9)(a), (10), (11) and (12) of section 30 of this Act shall apply in respect of Orders in Council under this section as they apply in respect of Orders in Council under that section.

Sequestration etc. of estate comprising realisable property

Sequestration of person holding realisable property.

1985 c. 66.

33.—(1) Where the estate of a person who holds realisable property is sequestrated—

(a) property for the time being subject to a restraint order made before the date of sequestration (within the meaning of section 12(4) of the 1985 Act); and

(b) any proceeds of property realised by virtue of section 13(1) of this Act for the time being in the hands of an administrator appointed under that section,

is excluded from the debtor's estate for the purposes of that Act.

(2) Where an award of sequestration has been made, the powers conferred on the Court of Session by sections 8, 11 to 13, 16, 24, 27 and 28 of this Act or on an administrator appointed under subsection (1) of the said section 13 shall not be exercised in relation to—

(a) property comprised in the whole estate of the debtor (within the meaning of section 31(8) of the 1985 Act); or

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- (b) any income of the debtor which has been ordered, under subsection (2) of section 32 of that Act, to be paid to the permanent trustee or any estate which, under subsection (6) of that section, vests in the permanent trustee,

and it shall not be competent to submit a claim in relation to the confiscation order to the permanent trustee in accordance with section 48 of that Act.

(3) Nothing in the 1985 Act shall be taken as restricting, or enabling the restriction of, the exercise of the powers so conferred.

(4) Where, during the period before sequestration is awarded, an interim trustee stands appointed under the proviso to section 13(1) of the 1985 Act and any property in the debtor's estate is subject to a restraint order, the powers conferred on the interim trustee by virtue of that Act do not apply to property for the time being subject to the restraint order.

(5) Where the estate of a person is sequestrated and he has directly or indirectly made an implicative gift—

- (a) no decree shall, at any time when proceedings as regards an offence to which section 1 of this Act relates have been instituted against him and have not been concluded or when property of the person to whom the gift was made is subject to a restraint order, be granted under section 34 or 36 of the 1985 Act (gratuitous alienations and unfair preferences) in respect of the making of the gift; and
- (b) any decree granted under either of the said sections 34 and 36 after the conclusion of the proceedings shall take into account any realisation under this Act of property held by the person to whom the gift was made.

(6) In any case in which, notwithstanding the coming into force of the 1985 Act, the Bankruptcy (Scotland) Act 1913 applies to a sequestration, subsection (2) above shall have effect as if for paragraphs (a) and (b) thereof there were substituted the following paragraphs—

3 & 4 Geo. 5 c. 20.

- “(a) property comprised in the whole property of the debtor which vests in the trustee under section 97 of the Bankruptcy (Scotland) Act 1913,
- (b) any income of the bankrupt which has been ordered, under subsection (2) of section 98 of that Act, to be paid to the trustee or any estate which, under subsection (1) of that section, vests in the trustee,”;

and subsection (3) above shall have effect as if, for the reference in it to the 1985 Act, there were substituted a reference to the said Act of 1913.

1985 c. 66.

34.—(1) Where a person who holds realisable property is adjudged bankrupt—

- (a) property for the time being subject to a restraint order made before the order adjudging him bankrupt, and
- (b) any proceeds of property realised by virtue of section 13(1) of this Act for the time being in the hands of an administrator appointed under that section,

Bankruptcy in
England and
Wales of person
holding realisable
property.

is excluded from the bankrupt's estate for the purposes of Part IX of the Insolvency Act 1986.

1986 c. 45.

PART I

(2) Where a person has been adjudged bankrupt, the powers conferred on the Court of Session by sections 8, 11 to 13, 16, 24, 27 and 28 of this Act or on an administrator appointed under subsection (1) of the said section 13 shall not be exercised in relation to—

- (a) property for the time being comprised in the bankrupt's estate for the purposes of the said Part IX,
- (b) property in respect of which his trustee in bankruptcy may (without leave of the court) serve a notice under section 307 or 308 of the Insolvency Act 1986 (after-acquired property and tools, clothes etc. exceeding value of reasonable replacement), and
- (c) property which is to be applied for the benefit of creditors of the bankrupt by virtue of a condition imposed under section 280(2)(c) of the Insolvency Act 1986.

(3) Nothing in the Insolvency Act 1986 shall be taken as restricting, or enabling the restriction of, the exercise of the powers so conferred.

(4) Where, in the case of a debtor, an interim receiver stands appointed under section 286 of the Insolvency Act 1986 and any property of the debtor is subject to a restraint order the powers conferred on the receiver by virtue of that Act do not apply to property for the time being subject to the restraint order.

(5) Where a person is adjudged bankrupt and has directly or indirectly made an implicative gift—

- (a) no order shall, at any time when proceedings for a drug trafficking offence have been instituted against him and have not been concluded or when property of the person to whom the gift was made is subject to a restraint order, be made under section 339 or 423 of the Insolvency Act 1986 (avoidance of certain transactions) in respect of the making of the gift, and
- (b) any order made under either of those sections after the conclusion of the proceedings shall take into account any realisation under this Act of property held by the person to whom the gift was made.

(6) In any case in which a petition in bankruptcy was presented, or a receiving order or adjudication in bankruptcy was made, before the date on which the Insolvency Act 1986 came into force, subsections (2) to (5) above have effect with the following modifications—

- (a) for references to the bankrupt's estate for the purposes of Part IX of that Act there are substituted references to the property of the bankrupt for the purposes of the Bankruptcy Act 1914,
- (b) for references to the said Act of 1986 and to sections 280(2)(c), 286, 339, and 423 of that Act there are respectively substituted references to the said Act of 1914 and to sections 26(2), 8, 27 and 42 of that Act,
- (c) the references in subsection (4) to an interim receiver appointed as there mentioned include, where a receiving order has been made, a reference to the receiver constituted by virtue of section 7 of the said Act of 1914, and

(d) subsections (2)(b) and (4) are omitted.

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35.—(1) Where realisable property is held by a company and an order for the winding up of the company has been made or a resolution has been passed by the company for the voluntary winding up, the functions of the liquidator (or any provisional liquidator) shall not be exercisable in relation to—

Winding up
company holding
realisable
property.

- (a) property for the time being subject to a restraint order made before the relevant time, and
- (b) any proceeds of property realised by virtue of section 13(1) of this Act for the time being in the hands of an administrator appointed under that section.

(2) Where, in the case of a company, such an order has been made or such a resolution has been passed, the powers conferred on the Court of Session by sections 8, 11 to 13, 16, 24, 27 and 28 of this Act or on an administrator appointed under subsection (1) of the said section 13 shall not be exercised in relation to any realisable property held by the company in relation to which the functions of the liquidator are exercisable—

- (a) so as to inhibit the liquidator from exercising those functions for the purpose of distributing any property held by the company to the company's creditors, or
- (b) so as to prevent the payment out of any property of expenses (including the remuneration of the liquidator or any provisional liquidator) properly incurred in the winding up in respect of the property.

(3) Nothing in the Insolvency Act 1986 shall be taken as restricting, or enabling the restriction of, the exercise of the powers so conferred. 1986 c. 45.

(4) For the purposes of the application of Parts IV and V of the Insolvency Act 1986 (winding up of registered companies and winding up of unregistered companies) to a company which the Court of Session has jurisdiction to wind up, a person is not a creditor in so far as any sum due to him by the company is due in respect of a confiscation order (whether under this Act or under and within the meaning of section 1 of the Drug Trafficking Offences Act 1986 or any corresponding provision in Northern Ireland). 1986 c. 32.

(5) In this section—

“company” means any company which may be wound up under the Insolvency Act 1986; and

“the relevant time” means—

- (a) where no order for the winding up of the company has been made, the time of the passing of the resolution for voluntary winding up,
- (b) where such an order has been made and, before the presentation of the petition for the winding up of the company by the court, such a resolution had been passed by the company, the time of the passing of the resolution, and
- (c) in any other case where such an order has been made, the time of the making of the order.

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1985 c. 6.

(6) In any case in which a winding up of a company commenced, or is treated as having commenced, before the date on which the Insolvency Act 1986 came into force, subsections (2) to (5) above have effect with the substitution for references to that Act of references to the Companies Act 1985.

Property subject
to floating charge.

36.—(1) Where any property held subject to a floating charge by a company is realisable property and a receiver has been appointed by, or on the application of, the holder of the charge, the powers of the receiver in relation to the property so held shall not be exercisable in relation to—

- (a) so much of it as is for the time being subject to a restraint order made before the appointment of the receiver, and
- (b) any proceeds of property realised by virtue of section 13(1) of this Act for the time being in the hands of an administrator appointed under that section.

(2) Where, in the case of a company, such an appointment has been made, the powers conferred on the Court of Session by sections 8, 11 to 13, 16 and 24 of this Act or on an administrator appointed under subsection (1) of the said section 13 shall not be exercised in relation to any realisable property held by the company in relation to which the powers of the receiver are exercisable—

- (a) so as to inhibit the receiver from exercising his powers for the purpose of distributing any property held by the company to the company's creditors, or
- (b) so as to prevent the payment out of any property of expenses (including the remuneration of the receiver) properly incurred in the exercise of the receiver's powers in respect of the property.

1986 c.45.

(3) Nothing in the Insolvency Act 1986, shall be taken as restricting, or enabling the restriction of, the exercise of the powers so conferred.

(4) In this section—

“company” has the same meaning as in section 35 of this Act; and

“floating charge” includes a floating charge within the meaning given by section 462 of the Companies Act 1985 (power of incorporated company to create floating charge).

(5) In any case in which a receiver was appointed as is mentioned in subsection (1) above before the date on which the Insolvency Act 1986 came into force, subsections (2) to (4) above have effect with the substitution for references to that Act of references to the Companies Act 1985.

Insolvency
practitioners
dealing with
property subject
to restraint order.

37.—(1) Without prejudice to the generality of any enactment contained in the Insolvency Act 1986 or in the 1985 Act, where—

- (a) any person acting as an insolvency practitioner seizes or disposes of any property in relation to which his functions are, because that property is for the time being subject to a restraint order, not exercisable; and
- (b) at the time of the seizure or disposal he believes, and has reasonable grounds for believing, that he is entitled (whether in pursuance of a court order or otherwise) to seize or dispose of that property,

he shall not be liable to any person in respect of any loss or damage resulting from the seizure or disposal except in so far as the loss or damage is caused by the insolvency practitioner's negligence; and the insolvency practitioner shall have a lien on the property, or the proceeds of its sale, for such of his expenses as were incurred in connection with the liquidation, sequestration or other proceedings in relation to which the seizure or disposal purported to take place and for so much of his remuneration as may reasonably be assigned for his actings in connection with those proceedings.

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(2) Any person who, acting as an insolvency practitioner, incurs expenses—

- (a) in respect of such property as is mentioned in paragraph (a) of subsection (1) above and in so doing does not know and has no reasonable grounds to believe that the property is for the time being subject to a restraint order; or
- (b) other than in respect of such property as is so mentioned, being expenses which, but for the effect of a restraint order, might have been met by taking possession of and realising the property,

shall be entitled (whether or not he has seized or disposed of that property so as to have a lien under that subsection) to payment of those expenses under section 16(1) or (3)(a) of this Act.

(3) In the foregoing provisions of this section, the expression "acting as an insolvency practitioner" shall be construed in accordance with section 388 (interpretation) of the said Act of 1986 except that for the purposes of such construction the reference in subsection (2)(a) of that section to a permanent or interim trustee in a sequestration shall be taken to include a reference to a trustee in a sequestration and subsection (5) of that section (which provides that nothing in the section is to apply to anything done by the official receiver) shall be disregarded; and the expression shall also comprehend the official receiver acting as receiver or manager of the property.

Investigations and disclosure of information

38.—(1) The procurator fiscal may, for the purpose of an investigation into drug trafficking, apply to the sheriff for an order under subsection (2) below in relation to particular material or material of a particular description.

Order to make
material available.

(2) If on such an application the sheriff is satisfied that the conditions in subsection (4) below are fulfilled, he may make an order that the person who appears to him to be in possession of the material to which the application relates shall—

- (a) produce it to a constable or person commissioned by the Commissioners of Customs and Excise for him to take away, or
- (b) give a constable or person so commissioned access to it,

within such period as the order may specify.

This subsection is subject to section 41(11) of this Act.

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(3) The period to be specified in an order under subsection (2) above shall be seven days unless it appears to the sheriff that a longer or shorter period would be appropriate in the particular circumstances of the application.

(4) The conditions referred to in subsection (2) above are—

- (a) that there are reasonable grounds for suspecting that a specified person has carried on, or has derived financial or other rewards from, drug trafficking,
- (b) that there are reasonable grounds for suspecting that the material to which the application relates—

- (i) is likely to be of substantial value (whether by itself or together with other material) to the investigation for the purpose of which the application is made, and

- (ii) does not consist of or include items subject to legal privilege, and

- (c) that there are reasonable grounds for believing that it is in the public interest, having regard—

- (i) to the benefit likely to accrue to the investigation if the material is obtained, and

- (ii) to the circumstances under which the person in possession of the material holds it,

that the material should be produced or that access to it should be given.

(5) Where the sheriff makes an order under subsection (2)(b) above in relation to material on any premises he may, on the application of the procurator fiscal, order any person who appears to him to be entitled to grant entry to the premises to allow a constable to enter the premises to obtain access to the material.

(6) Provision may be made by rules of court as to—

- (a) the discharge and variation of orders under this section, and
- (b) proceedings relating to such orders.

(7) Where the material to which an application under this section relates consists of information contained in a computer—

- (a) an order under subsection (2)(a) above shall have effect as an order to produce the material in a form in which it can be taken away and in which it is visible and legible, and
- (b) an order under subsection (2)(b) above shall have effect as an order to give access to the material in a form in which it is visible and legible.

(8) An order under subsection (2) above—

- (a) shall not confer any right to production of, or access to, items subject to legal privilege,
- (b) shall have effect notwithstanding any obligation as to secrecy or other restriction upon the disclosure of information imposed by statute or otherwise, and

- (c) may be made in relation to material in the possession of an authorised government department. **PART I**

39.—(1) The procurator fiscal may, for the purpose of an investigation into drug trafficking, apply to the sheriff for a warrant under this section in relation to specified premises. **Authority for search.**

(2) On such application the sheriff may issue a warrant authorising a constable, or person commissioned by the Commissioners of Customs and Excise, to enter and search the premises if the sheriff is satisfied—

- (a) that an order made under section 38 of this Act in relation to material on the premises has not been complied with, or
- (b) that the conditions in subsection (3) below are fulfilled, or
- (c) that the conditions in subsection (4) below are fulfilled.

(3) The conditions referred to in subsection (2)(b) above are—

- (a) that there are reasonable grounds for suspecting that a specified person has carried on, or has derived financial or other rewards from, drug trafficking, and
- (b) that the conditions in section 38(4)(b) and (c) of this Act are fulfilled in relation to any material on the premises, and
- (c) that it would not be appropriate to make an order under that section in relation to the material because—

(i) it is not practicable to communicate with any person entitled to produce the material, or

(ii) it is not practicable to communicate with any person entitled to grant access to the material or entitled to grant entry to the premises on which the material is situated, or

(iii) the investigation for the purposes of which the application is made might be seriously prejudiced unless a constable or person commissioned as aforesaid could secure immediate access to the material.

(4) The conditions referred to in subsection (2)(c) above are—

- (a) that there are reasonable grounds for suspecting that a specified person has carried on, or has derived financial or other rewards from, drug trafficking, and
- (b) that there are reasonable grounds for suspecting that there is on the premises material relating to the specified person or to drug trafficking which is likely to be of substantial value (whether by itself or together with other material) to the investigation for the purpose of which the application is made, but that the material cannot at the time of the application be particularised, and

(c) that—

(i) it is not practicable to communicate with any person entitled to grant entry to the premises, or

(ii) entry to the premises will not be granted unless a warrant is produced, or

(iii) the investigation for the purpose of which the application is made might be seriously prejudiced unless a constable or person commissioned as aforesaid arriving at the premises could secure immediate entry to them.

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(5) Where a constable or person commissioned as aforesaid has entered premises in the execution of a warrant issued under this section, he may seize and retain any material, other than items subject to legal privilege, which is likely to be of substantial value (whether by itself or together with other material) to the investigation for the purpose of which the warrant was issued.

Interpretation of
sections 38 and
39.

40. In sections 38 and 39 of this Act—

“items subject to legal privilege” means—

(a) communications between a professional legal adviser and his client, or

(b) communications made in connection with or in contemplation of legal proceedings and for the purposes of these proceedings,

being communications which would in legal proceedings be protected from disclosure by virtue of any rule of law relating to the confidentiality of communications; and

“premises” includes any place and, in particular, includes—

(a) any vehicle, vessel, aircraft or hovercraft,

(b) any offshore installation within the meaning of section 1 of the Mineral Workings (Offshore Installations) Act 1971, and

(c) any tent or movable structure.

1971 c.61.

Disclosure of
information held
by government
departments.

41.—(1) Subject to subsection (4) below, the Court of Session may on an application by the Lord Advocate order any material mentioned in subsection (3) below which is in the possession of an authorised government department to be produced to the Court within such period as the Court may specify.

(2) The power to make an order under subsection (1) above is exercisable if—

(a) the powers conferred on the Court by subsection (1) of section 8 of this Act are exercisable by virtue of paragraph (a) thereof, or

(b) those powers are exercisable by virtue of paragraph (b) of subsection (1) of that section and the Court has made a restraint order which has not been recalled;

but, where the power to make an order under subsection (1) above is exercisable by virtue only of paragraph (b) above, subsection (4) of section 9 of this Act shall for the purposes of this section apply in relation to that order as the said subsection (4) applies, for the purposes of that section, in relation to a restraint order made by virtue of paragraph (b) of subsection (1) of the said section 8.

(3) The material referred to in subsection (1) above is any material which—

(a) has been submitted to an officer of an authorised government department by a person who holds, or has at any time held, realisable property,

(b) has been made by an officer of an authorised government department in relation to such a person, or

PART I

(c) is correspondence which passed between an officer of an authorised government department and such a person; and an order under that subsection may require the production of all such material or of a particular description of such material, being material in the possession of the department concerned.

(4) An order under subsection (1) above shall not require the production of any material unless it appears to the Court of Session that the material is likely to contain information that would facilitate the exercise of the powers conferred on the Court by section 8, 13 or 24 of this Act or on an administrator appointed under subsection (1) of the said section 13.

(5) The Court may by order authorise the disclosure to such an administrator of any material produced under subsection (1) above or any part of such material; but the Court shall not make an order under this subsection unless a reasonable opportunity has been given for an officer of the department to make representations to the Court.

(6) Material disclosed in pursuance of an order under subsection (5) above may, subject to any conditions contained in the order, be further disclosed for the purposes of the functions under this Act of the administrator or the High Court.

(7) The Court of Session may by order authorise the disclosure to a person mentioned in subsection (8) below of any material produced under subsection (1) above or any part of such material; but the Court shall not make an order under this subsection unless—

- (a) a reasonable opportunity has been given for an officer of the department to make representations to the Court, and
- (b) it appears to the Court that the material is likely to be of substantial value in exercising functions relating to drug trafficking.

(8) The persons referred to in subsection (7) above are—

- (a) a constable,
- (b) the Lord Advocate or any procurator fiscal, and
- (c) a person commissioned by the Commissioners of Customs and Excise.

(9) Material disclosed in pursuance of an order under subsection (7) above may, subject to any conditions contained in the order, be further disclosed for the purposes of functions relating to drug trafficking.

(10) Material may be produced or disclosed in pursuance of this section notwithstanding any obligation as to secrecy or other restriction upon the disclosure of information imposed by statute or otherwise.

(11) An order under subsection (1) above and, in the case of material in the possession of an authorised government department, an order under section 38(2) of this Act may require any officer of the department (whether named in the order or not) who may for the time being be in possession of the material concerned to comply with such order; and any such order shall be served as if the proceedings were civil proceedings against the department.

(12) The person on whom an order under subsection (1) above is served—

- (a) shall take all reasonable steps to bring it to the attention of the officer concerned, and

PART I

- (b) if the order is not brought to that officer's attention within the period referred to in subsection (1) above, shall report the reasons for the failure to the Court of Session;

and it shall also be the duty of any other officer of the department in receipt of the order to take such steps as are mentioned in paragraph (a) above.

Offences

Offence of
prejudicing
investigation.

42.—(1) A person who, knowing or suspecting that an investigation into drug trafficking is taking place, does anything which is likely to prejudice the investigation is guilty of an offence.

(2) In proceedings against a person for an offence under subsection (1) above, it is a defence to prove—

- (a) that he did not know or suspect, or have reasonable grounds to suspect, that by acting as he did he was likely to prejudice the investigation, or
- (b) that he had lawful authority or reasonable excuse for acting as he did.

(3) A person guilty of an offence under subsection (1) above shall be liable—

- (a) on conviction on indictment, to imprisonment for a term not exceeding five years or to a fine or to both, and
- (b) on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding the statutory maximum or to both.

Offence of
assisting another
to retain the
proceeds of drug
trafficking.

43.—(1) Subject to subsection (3)(b) below, a person shall be guilty of an offence if, knowing or suspecting that another person (in this section referred to as "A") is a person who carries on, or has carried on, or has derived financial or other rewards from, drug trafficking, he enters into, or is otherwise concerned in, an arrangement whereby—

- (a) the retention or control, by or on behalf of A, of A's proceeds of drug trafficking is facilitated (whether by concealment, removal from the jurisdiction, transfer to nominees or otherwise); or
- (b) A's proceeds of drug trafficking—
 - (i) are used to secure that funds are placed at A's disposal, or
 - (ii) are used for A's benefit to acquire property by way of investment.

(2) In this section, references to proceeds of drug trafficking shall be construed as including any property which, whether in whole or in part, directly or indirectly constitutes such proceeds.

(3) Where a person discloses to a constable or to a person commissioned by the Commissioners of Customs and Excise a suspicion or belief that any funds or investments are derived from or used in connection with drug trafficking or any matter on which such a suspicion or belief is based—

- (a) the disclosure shall not be treated as a breach of any restriction imposed by contract on the disclosure of information; and

PART I

- (b) if the disclosure relates to an arrangement entry into which, or concern in which, by the person would (but for this paragraph) contravene subsection (1) above, he does not commit an offence under that subsection if—

(i) the disclosure is made before, with the consent of the constable or as the case may be of the person so commissioned, he enters into, or becomes concerned in, that arrangement, or

(ii) though made after he enters into, or becomes concerned in, that arrangement, it is made on his own initiative and as soon as it is reasonable for him to do so.

(4) In proceedings against a person for an offence under subsection (1) above, it shall be a defence to prove—

- (a) that he did not know or suspect that the arrangement related to any person's proceeds of drug trafficking; or
- (b) that he did not know or suspect that by the arrangement the retention or control by or on behalf of A of any property was facilitated or, as the case may be, that by the arrangement any property was used as mentioned in subsection (1) above; or
- (c) that—

(i) he intended to disclose to a constable or to a person commissioned as aforesaid such a suspicion, belief or matter as is mentioned in subsection (3) above in relation to the arrangement, but

(ii) there is reasonable excuse for his failure to make disclosure in accordance with paragraph (b) of that subsection.

(5) A person guilty of an offence under subsection (1) above shall be liable—

- (a) on conviction on indictment, to imprisonment for a term not exceeding fourteen years or to a fine or to both; and
- (b) on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding the statutory maximum or to both.

44.—(1) Without prejudice to section 395(1) of the 1975 Act (fines) as applied by section 194 of that Act but subject to the proviso to subsection (1) of section 2 of this Act, where a person is convicted on indictment of an offence to which this section relates and sentenced in respect of that offence to a period of imprisonment or detention, the Court where—

Offences relating
to controlled
drugs: fines.
1975 c. 21.

- (a) paragraph (b) below does not apply shall, unless it is satisfied that for any reason it would be inappropriate to do so, also impose a fine;
- (b) it makes an order under section 1(1) of this Act as regards the person, may also impose a fine.

(2) In determining the amount of a fine imposed under paragraph (a) of subsection (1) above, the Court shall have regard to any profits likely to have been made by the person from the crime in respect of which he has been convicted.

(3) This section relates to the same offences as does section 1 of this Act.

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(4) Where in any proceedings a fine has been imposed by virtue of subsection (1) above as regards a person and a period of imprisonment or detention is imposed on him in default of payment of its amount (or as the case may be of an instalment thereof), that period shall run from the expiry of any other period of imprisonment or detention (not being one of life imprisonment or detention for life) imposed on him in the proceedings.

(5) The reference in subsection (4) above to "any other period of imprisonment or detention imposed" includes (without prejudice to the generality of the expression) a reference to such a period imposed on default of payment of a fine (or instalment thereof) or of a confiscation order (or instalment thereof); but only where that default has occurred before the warrant for imprisonment is issued for the default in relation to the fine imposed by virtue of subsection (1) of this section.

Minor amendments, service, notice and interpretation

Minor
amendments in
relation to drug
trafficking.

4 & 5 Geo. 5 c. 59.
1974 c. 53.

45.—(1) Section 28 of the Bankruptcy Act 1914 (effect of order of discharge) shall have effect as if amounts payable under confiscation orders were debts excepted under subsection (1)(a) of that section.

(2) In section 1(2)(a) of the Rehabilitation of Offenders Act 1974 (failure to pay fines etc. not to prevent person becoming rehabilitated) the reference to a fine or other sum adjudged to be paid by or on a conviction does not include a reference to an amount payable under a confiscation order.

1982 c. 27.

(3) In subsection (4A) of section 18 of the Civil Jurisdiction and Judgments Act 1982 (exceptions as to enforcement of U.K. judgments in other parts of U.K.), at the end there shall be added the following words—

“; or as respects the enforcement in England and Wales of orders made by the Court of Session under or for the purposes of Part I of the Criminal Justice (Scotland) Act 1987”.

1986 c. 45.

(4) Section 281(4) of the Insolvency Act 1986 (discharge of bankrupt not to release him from liabilities in respect of fines, etc.) shall have effect as if the reference to a fine included a reference to a confiscation order.

1985 c. 66.

(5) In the 1985 Act—

(a) in section 5(4) (interpretation)—

(i) after the words “future debts” there shall be inserted the words “or amounts payable under a confiscation order”; and

(ii) at the end there shall be added the words “; and in the foregoing provisions of this subsection “confiscation order” has the meaning assigned by section 1(1) of the Criminal Justice (Scotland) Act 1987 or by section 1(8) of the Drug Trafficking Offences Act 1986”;

1986 c. 32.

(b) in section 7(1) (constitution of apparent insolvency)—

(i) in paragraph (b), at the beginning there shall be inserted the words “not being a person whose property is for the time being affected by a restraint order or subject to a confiscation, or charging, order,”;

PART I

(ii) in paragraph (c), after the words "became due" there shall be inserted the words "or that but for his property being affected by a restraint order or subject to a confiscation, or charging, order he would be able to do so"; and

(iii) at the end there shall be added the words "In paragraph (d) above, "liquid debt" does not include a sum payable under a confiscation order; and in the foregoing provisions of this subsection—

"charging order" has the meaning assigned by section 9(2) of the Drug Trafficking Offences Act 1986;

"confiscation order" has the meaning assigned by section 1(1) of the Criminal Justice (Scotland) Act 1987 or by section 1(8) of the said Act of 1986; and

"restraint order" has the meaning assigned by section 9 of the said Act of 1987 or by section 8 of the said Act of 1986."; and

- (c) section 55(2) (discharge of debtor not to release him from liabilities in respect of fines etc.) shall have effect as if the reference to a fine included a reference to a confiscation order.

(6) In section 231 of the 1975 Act (intimation of intention to appeal)— 1975 c. 21.

- (a) in subsection (1), after the words "236B(2) of this Act" there shall be inserted the words "and to section 2(2) of the Criminal Justice (Scotland) Act 1987 (postponed confiscation orders)";

- (b) in subsection (4), at the beginning there shall be inserted the words "Subject to subsection (5) below,"; and

- (c) after subsection (4) there shall be added the following subsection—

"(5) Without prejudice to subsection (2) of section 2 of the said Act of 1987, the reference in subsection (4) above to "the day on which sentence is passed in open court" shall, in relation to any case in which, under subsection (1) of that section, a decision has been postponed for a period, be construed as a reference to the day on which that decision is made (whether or not a confiscation order is then made or any other sentence is then passed)."

(7) In the Drug Trafficking Offences Act 1986—

- (a) at the end of section 2(5) (assessing the proceeds of drug trafficking) there shall be inserted the words—

"References in this subsection to a confiscation order include a reference to a confiscation order within the meaning of Part I of the Criminal Justice (Scotland) Act 1987";

- (b) in section 8 (restraint orders)—

(i) in subsection (8), for the words "the High Court has made a restraint order" there shall be substituted the words "a restraint order has been made" and at the end of that subsection there shall be added the words—

"In this subsection, the reference to a restraint order includes a reference to a restraint order within the meaning of Part I of the Criminal Justice (Scotland) Act 1987, and, in relation to such an order, "realisable property" has the same meaning as in that Part"; and

PART I

(ii) in subsection (9), for the words "court's directions" there shall be substituted the words "directions of the court which made the order";

(c) in section 16 (sequestration of person holding realisable property)—

(i) in subsection (2), at the end there shall be added the words ", and it shall not be competent to submit a claim in relation to the confiscation order to the permanent trustee in accordance with section 48 of that Act."; and

(ii) in subsection (5), in paragraph (b)(ii), after the word "disposal" there shall be inserted the words "and for so much of his remuneration as may reasonably be assigned for his actings in that connection"; and in paragraph (c), for the words "a lien for any expenses (including his remuneration) properly incurred in respect of the property" there shall be substituted the words "any such lien as is mentioned in paragraph (b)(ii) above";

(d) in section 19(2)(b)(ii) (compensation for loss in consequence of anything done in relation to realisable property by or in pursuance of order of Court of Session), for the words "20, 21 or 22 of this Act" there shall be substituted the words "11 (as applied by subsection (6) of that section), 27 or 28 of the Criminal Justice (Scotland) Act 1987 (inhibition and arrestment of property affected by restraint order and recognition and enforcement of orders under this Act)";

(e) in section 33 (power to inspect Land Register etc.)—

(i) in subsection (2), after paragraph (c) there shall be inserted the words—", or

(d) the Lord Advocate or any person conducting a prosecution in Scotland on his behalf,";

(ii) in subsection (4)—

after the words "8 or 11 of this Act" there shall be inserted the words "or by an administrator appointed under section 13 of the Criminal Justice (Scotland) Act 1987 (comparable Scottish provisions)"; and

in each of paragraphs (a) and (b), after the word "receiver" there shall be inserted the words "(or administrator)"; and

(f) in section 40(4)(b) (effect in Scotland), at the beginning there shall be inserted the words "section 3(6)".

Service and notice
for purposes of
Part I.

46. Subject to the provisions of this Part of this Act, provision may be made by rules of court as to the giving of notice required for the purposes of this Part of this Act or the effecting of service so required; and different provision may be so made for different cases or classes of case and for different circumstances or classes of circumstance.

Interpretation of
Part I.

47.—(1) In this Part of this Act (except where the context otherwise requires)—

"administrator" shall be construed in accordance with section 13 of this Act;

PART I

"associate" shall be construed in accordance with section 74 of the 1985 Act;

"authorised government department" means a government department which is an authorised department for the purposes of the Crown Proceedings Act 1947;

10 & 11 Geo. 6 c.
44.

"confiscation order" has the meaning assigned by section 1(1) of this Act;

"designated country" shall be construed in accordance with section 30(2) of this Act;

"drug trafficking" has the meaning assigned by section 1(6) of this Act;

"implicative gift" shall be construed in accordance with section 6 of this Act;

"realisable property" shall be construed in accordance with section 5 of this Act;

"restraint order" has the meaning assigned by section 9 of this Act; and

"the 1985 Act" means the Bankruptcy (Scotland) Act 1985.

1985 c. 66.

(2) This Part of this Act shall (except where the context otherwise requires) be construed as one with the 1975 Act.

1975 c. 21.

(3) This Part of this Act applies to property whether it is situated in Scotland or elsewhere.

(4) References in this Part of this Act—

- (a) to offences include a reference to offences committed before the commencement of section 1 of this Act; but nothing in this Act imposes any duty or confers any power on any court in or in connection with proceedings against a person for an offence to which that section relates instituted before the commencement of that section;
- (b) to anything received in connection with drug trafficking include a reference to anything received both in that connection and in some other connection; and
- (c) to property held by a person include a reference to property vested in the interim or permanent trustee in his sequestration or in his trustee in bankruptcy or liquidator.

(5) For the purposes of this Part of this Act (and subject to subsections (8) and (9) of section 30 of this Act), proceedings are concluded as regards an offence where—

- (a) the trial diet is deserted *simpliciter*;
- (b) the accused is acquitted or, under section 101 of the 1975 Act, discharged or liberated;
- (c) the High Court sentences or otherwise deals with him without making a confiscation order and without postponing a decision as regards making such an order;
- (d) after such postponement as is mentioned in paragraph (c) above, the High Court decides not to make a confiscation order;
- (e) his conviction is quashed; or
- (f) either the amount of a confiscation order made has been paid or there remains no liability to imprisonment in default of so much of that amount as is unpaid.

PART II

MISCELLANEOUS

Detention by customs officers

Detention and
questioning by
customs officers.

48.—(1) Where an officer has reasonable grounds for suspecting that a person has committed or is committing an offence punishable by imprisonment relating to an assigned matter, the officer may, for the purpose of facilitating the carrying out of investigations—

- (a) into the offence; and
- (b) as to whether criminal proceedings should be instigated against the person,

detain that person and take him as quickly as is reasonably practicable to a customs office or other premises and, subject to the following provisions of this section, the detention may continue there.

(2) Detention under subsection (1) above shall be terminated not more than six hours after it begins or (if earlier)—

- (a) when the person is arrested;
- (b) when he is detained in pursuance of any other enactment or subordinate instrument; or
- (c) where there are no longer such grounds as are mentioned in the said subsection (1),

and when a person has been detained under subsection (1) above, he shall be informed immediately upon the termination of his detention in accordance with this subsection that his detention has been terminated.

(3) Where a person has been released at the termination of a period of detention under subsection (1) above he shall not thereafter be detained, under that subsection, on the same grounds or on any grounds arising out of the same circumstances.

(4) Where a person has previously been detained in pursuance of any other enactment or subordinate instrument, he may not be detained under subsection (1) above on the same grounds or on grounds arising from the same circumstances as those which led to his earlier detention.

(5) At the time when an officer detains a person under subsection (1) above, he shall inform the person of his suspicion, of the general nature of the offence which he suspects has been or is being committed and of the reason for the detention; and there shall be recorded—

- (a) the place where detention begins and the customs office or other premises to which the person is taken;
- (b) the general nature of the suspected offence;
- (c) the time when detention under subsection (1) above begins and the time of the person's arrival at the customs office or other premises;
- (d) the time when the person is informed of his rights in terms of subsection (8) below and of section 49(1) of this Act and the identity of the officer so informing him;
- (e) where the person requests such intimation to be sent as is specified in section 49(1) of this Act, the time when such request is—
 - (i) made;
 - (ii) complied with; and

PART II

- (f) the time of the person's departure from the customs office or other premises or, where instead of being released he is—

(i) further detained under section 50 of this Act, the time of commencement of the further detention; or

(ii) arrested in respect of the alleged offence, the time of such arrest.

(6) Where a person is detained under subsection (1) above, an officer may—

- (a) without prejudice to any existing rule of law as regards the admissibility in evidence of any answer given, put questions to him in relation to the suspected offence;
- (b) exercise the same powers of search as are available following an arrest.

(7) An officer may use reasonable force in exercising any power conferred by subsection (1) or (6)(b) above.

(8) A person detained under subsection (1) above shall be under no obligation to answer any question other than to give his name and address, and an officer shall so inform him both on so detaining him and on arrival at the customs office or other premises.

(9) In this section and in sections 49 and 50 of this Act "assigned matter" and "officer" have the meanings given to them by section 1 of the Customs and Excise Management Act 1979, and "customs office" means a place for the time being occupied by Her Majesty's Customs and Excise. 1979 c. 2.

49.—(1) Without prejudice to section 19 or 305 of the 1975 Act (intimation to solicitor following arrest), a person who, not being a person in respect of whose detention subsection (2) below applies, is being detained under section 48 of this Act at a customs office or other premises shall be entitled to have intimation of his detention and of the place where he is being detained sent to a solicitor and to one other person reasonably named by him without delay or, where some delay is necessary in the interest of the investigation or the prevention of crime or the apprehension of offenders, with no more delay than is so necessary; and the person shall be informed of such entitlement—

Right to have someone informed when detained.
1975 c. 21.

- (a) on arrival at the customs office or other premises; or
- (b) where he is not detained until after such arrival, on such detention.

(2) Without prejudice to the said section 19 or 305, an officer shall, where a person who is being detained as is mentioned in subsection (1) above appears to him to be a child, send without delay such intimation as is mentioned in that subsection to that person's parent if known; and the parent—

- (a) in a case where there is reasonable cause to suspect that he has been involved in the alleged offence in respect of which the person has been detained, may; and

PART II

(b) in any other case shall,
be permitted access to the person.

(3) The nature and extent of any access permitted under subsection (2) above shall be subject to any restriction essential for the furtherance of the investigation or the well-being of the person.

(4) In subsection (2) above—

- (a) "child" means a person under 16 years of age; and
- (b) "parent" includes a guardian and any person who has the actual custody of a child.

Detention in
connection with
certain drug
smuggling
offences.

50.—(1) Where an officer has reasonable grounds for suspecting—

- (a) that a person has committed or is committing a relevant offence;
and
- (b) that, in connection with the commission of such an offence, a controlled drug is secreted in the person's body,

a superior officer may, notwithstanding that the person has been or is being detained in pursuance of any other enactment or subordinate instrument, authorise the detention of the person at a customs office or other premises in accordance with this section.

(2) Subject to subsection (7) below, where a person is detained under subsection (1) above or is further detained in pursuance of a warrant under subsection (4) below he shall—

- (a) provide such specimens of blood or urine for analysis;
- (b) submit to such intimate searches, to be carried out by a registered medical practitioner;
- (c) submit to such other tests or examinations prescribed by the Secretary of State by regulations made under this paragraph to be carried out by, or under the supervision of, a registered medical practitioner,

as the officer may reasonably require; and regulations under paragraph (c) above shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Subject to subsection (4) below, detention under subsection (1) above shall be terminated not more than 24 hours after it begins, or (if earlier)—

- (a) when the person is arrested;
- (b) when he is detained in pursuance of any other enactment or subordinate instrument; or
- (c) where there are no longer such grounds as are mentioned in subsection (1),

and, when a person has been detained under subsection (1), he shall, unless further detained in pursuance of a warrant under subsection (4) below, be informed immediately upon the termination of his detention in accordance with this subsection that his detention has been terminated.

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(4) Where a person is detained under subsection (1) above and either—

(a) he has failed or refused—

(i) to provide a specimen in pursuance of paragraph (a) of subsection (2) above; or

(ii) to submit to any search, test or examination referred to in paragraph (b) or (c) of that subsection; or

(b) as a result of anything done in pursuance of the said subsection (2) the officer continues to have reasonable grounds for suspecting—

(i) that the person has committed or is committing a relevant offence; and

(ii) that a controlled drug is secreted in the person's body, the procurator fiscal may, at the request of a superior officer, apply to the sheriff for a warrant for the further detention of the person at a customs office or other premises for an additional period of not more than 7 days; and if the sheriff is satisfied that there has been such failure or refusal as is mentioned in paragraph (a) above or, as the case may be, that there are reasonable grounds as mentioned in paragraph (b) above he may grant a warrant for such further detention.

(5) Detention in pursuance of a warrant under subsection (4) above shall be terminated at the end of the period of 7 days mentioned in that subsection or (if earlier)—

(a) when the person is arrested;

(b) when he is detained in pursuance of any other enactment or subordinate instrument; or

(c) where there are no longer such grounds as are mentioned in paragraph (b) of that subsection,

and when a person has been detained in pursuance of a warrant under subsection (4), he shall be informed immediately on the termination of his detention in accordance with this subsection that his detention has been terminated.

(6) Subject to subsection (7) below, the question whether it is to be a specimen of blood or a specimen of urine which is to be provided in pursuance of subsection (2) above shall be decided by the officer making the requirement.

(7) A person may be required, in pursuance of subsection (2) above—

(a) to provide a specimen of blood; or

(b) to submit to any search, test or examination,

only if a registered medical practitioner is of the opinion that there are no medical reasons for not making such a requirement; and, if a requirement to provide a specimen of blood is made, the specimen may be taken only by a registered medical practitioner.

(8) Subsections (3), (5), (6) and (8) of section 48 of this Act shall apply in respect of a person detained under this section as they apply in respect of a person detained under the said section 48; and, except as regards a requirement under subsection (2) above, an officer may use reasonable force in exercising any power conferred by this section.

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(9) Section 49 of this Act shall, subject to the following modifications, apply in respect of a person detained under this section as it applies to a person detained under section 48 of this Act—

- (a) any delay in informing a solicitor and one other person of such detention as is mentioned in subsection (1) of the said section 49 shall not extend longer than the period of 24 hours from the start of the detention, and shall only be permitted on the authorisation of a superior officer;
- (b) the person detained shall be entitled to consult a solicitor at any time without delay, and he shall be informed of such entitlement at the commencement of the detention; but, if a superior officer considers it necessary in the interest of the investigation or the prevention of crime or the apprehension of offenders, he may authorise a delay not extending longer than the period of 24 hours from the start of the detention; and
- (c) paragraph (a) of subsection (2) of the said section 49 shall cease to apply at the end of the period of 24 hours from the start of the detention,

but any delay authorised by virtue of this subsection shall be for no longer than is necessary in the interest of the investigation or the prevention of crime or the apprehension of offenders.

1978 c. 30.

(10) Without prejudice to section 20(2) of the Interpretation Act 1978, the references in section 48(5) of this Act to section 49(1) of this Act shall be construed as including references to subsection (9) above; and the requirement to record certain matters under the said section 48(5) shall include a requirement to record the time when a person detained makes a request to consult a solicitor and the time when the solicitor is contacted for the purpose of arranging a consultation.

(11) In this section—

“intimate search” means a search which consists of the physical examination of a person’s body orifices;

1979 c. 2.

“relevant offence” means an offence involving a controlled drug under any of the following provisions of the Customs and Excise Management Act 1979—

- (a) section 50(2) or (3) (importation etc. of prohibited goods);
- (b) section 68(2) (exportation etc. of prohibited goods);
- (c) section 170(1) (possessing or dealing with prohibited goods);
- (d) section 170(2) (being concerned in evasion or attempt at evasion of a prohibition);

“superior officer” means an officer of the grade of senior executive officer or above.

Investigation of serious or complex fraud

Lord Advocate’s
direction.

51.—(1) Where it appears to the Lord Advocate—

- (a) that a suspected offence may involve serious or complex fraud; and
- (b) that, for the purpose of investigating the affairs or any aspect of the affairs of any person, there is good reason to do so,

he may give a direction under this section.

PART II

(2) Where a direction is given under this section, sections 52 to 54 of this Act shall apply as regards the investigation of the offence; and any person (other than a constable) nominated by the Lord Advocate either generally or in respect of a particular case (in those sections referred to as "a nominated officer") shall be entitled to exercise the powers and functions conferred by those sections.

(3) A direction under this section shall be signed by the Lord Advocate.

52.—(1) A nominated officer may by notice in writing require the person whose affairs are to be investigated ("the person under investigation") or any other person who he has reason to believe has relevant information to attend before a nominated officer at a specified time and place and answer questions or otherwise furnish information with respect to any matter relevant to the investigation.

Powers of investigation.

(2) A nominated officer may by notice in writing require the person under investigation or any other person to produce at a specified time and place any specified documents which appear to a nominated officer to relate to any matter relevant to the investigation or any documents of a specified class which appear to him so to relate; and—

- (a) if any such documents are produced, a nominated officer may—
 - (i) take copies or extracts from them;
 - (ii) require the person producing them to provide an explanation of any of them;
- (b) if any such documents are not produced, a nominated officer may require the person who was required to produce them to state, to the best of his knowledge and belief, where they are.

(3) Where, on a petition presented by the procurator fiscal, the sheriff is satisfied, in relation to any documents, that there are reasonable grounds for believing—

- (a) that—
 - (i) a person has failed to comply with an obligation under this section to produce them;
 - (ii) it is not practicable to serve a notice under subsection (2) above in relation to them; or
 - (iii) the service of such a notice in relation to them might seriously prejudice the investigation; and
- (b) that they are on premises specified in the petition,

he may issue such a warrant as is mentioned in subsection (4) below.

(4) The warrant referred to in subsection (3) above is a warrant authorising a constable together with any other persons named in the warrant—

- (a) to enter (using such force as is reasonably necessary for the purpose) and search the premises; and
- (b) to take possession of any documents appearing to be documents of the description specified in the petition or to take in relation to any documents so appearing any other steps which may appear to be necessary for preserving them and preventing interference with them.

PART II

1933 c. 20.

(5) A statement by a person in response to a requirement imposed by virtue of this section may only be used in evidence against him in a prosecution for an offence under section 2 of the False Oaths (Scotland) Act 1933.

(6) A person shall not under this section be required to disclose any information or produce any document which is an item subject to legal privilege within the meaning of section 40 of this Act; except that a lawyer may be required to furnish the name and address of his client.

(7) No person shall be bound to comply with any requirement imposed by a person exercising power by virtue of a nomination under section 51(2) of this Act unless he has, if required to do so, produced evidence of his authority.

(8) In this section—

“documents” includes information recorded in any form and, in relation to information recorded otherwise than in legible form, references to its production include references to producing a copy of the information in legible form; and

“premises” has the same meaning as in section 40 of this Act.

(9) This section and sections 51 and 53 of this Act shall apply to England and Wales and Northern Ireland; and for the purposes of such application any reference—

(a) to the sheriff shall be construed as a reference to a justice of the peace; and

(b) to a petition presented by the procurator fiscal shall be construed—

(i) in England and Wales as a reference to an information laid by a nominated officer;

(ii) in Northern Ireland as a reference to a complaint laid by a nominated officer.

Offences in
relation to
investigations
under section 52.

53.—(1) Where any person—

(a) knows or suspects that an investigation under section 52 of this Act is being carried out or is likely to be carried out; and

(b) falsifies, conceals, destroys or otherwise disposes of, or causes or permits the falsification, concealment, destruction or disposal of documents which he knows or suspects or has reasonable grounds to suspect are or would be relevant to such an investigation,

he shall be guilty of an offence.

(2) In proceedings against a person for an offence under subsection (1) above, it shall be a defence to prove—

(a) that he did not know or suspect that by acting as he did he was likely to prejudice the investigation; or

(b) that he had lawful authority or reasonable excuse for acting as he did.

(3) A person guilty of an offence under subsection (1) above shall be liable—

(a) on conviction on indictment, to imprisonment for a term not exceeding seven years or to a fine or to both; and

- (b) on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding the statutory maximum or to both.

PART II

(4) Any person who fails to comply with a requirement imposed on him under the said section 52 shall be guilty of an offence and liable on summary conviction to imprisonment for a term not exceeding six months or to a fine not exceeding level 5 on the standard scale or to both.

(5) In proceedings against a person for an offence under subsection (4) above, it shall be a defence to prove that he had a reasonable excuse for acting as he did.

54.—(1) Where any information subject to an obligation of secrecy under the Taxes Management Act 1970 has been disclosed by the Commissioners of Inland Revenue or an officer of those Commissioners for the purposes of any prosecution of an offence relating to inland revenue, that information may be disclosed by the Lord Advocate for the purposes of any prosecution of an offence—

Disclosure of
information.
1970 c.9.

- (a) in respect of which a direction has been given under section 51(1)(a) of this Act; or

- (b) relating to inland revenue,

but not otherwise.

(2) Where any information is subject to an obligation of secrecy imposed by or under any enactment other than an enactment contained in the Taxes Management Act 1970, the obligation shall not have effect to prohibit the disclosure of that information to a nominated officer but any information disclosed by virtue of this subsection may only be disclosed by the Lord Advocate for the purpose of a prosecution in Scotland or elsewhere.

(3) Without prejudice to his power to enter into an agreement apart from this subsection, the Lord Advocate may enter into an agreement for the supply of information to or by him subject, in either case, to an obligation not to disclose the information concerned otherwise than for a specified purpose.

(4) Subject to subsections (1) and (2) above and to any provision of an agreement for the supply of information which restricts the disclosure of the information supplied, information obtained by a nominated officer may be disclosed—

- (a) to any government department, or any Northern Ireland Department, or other authority or body discharging its functions on behalf of the Crown (including the Crown in right of Her Majesty's Government in Northern Ireland);

- (b) to any competent authority;

- (c) for the purposes of any prosecution in Scotland or elsewhere; and

- (d) for the purposes of assisting any public or other authority for the time being designated for the purposes of this paragraph by an order made by the Secretary of State to discharge any functions which are specified in the order.

(5) The following are competent authorities for the purposes of subsection (4) above—

PART II
1985 c.6.

1986 c. 53.

1986 c.60.

1982 c. 50.

- (a) an inspector appointed under Part XIV of the Companies Act 1985 or Part XV of the Companies (Northern Ireland) Order 1986;
- (b) the Accountant in Bankruptcy;
- (c) an Official Receiver;
- (d) an Official Assignee;
- (e) a person appointed to carry out an investigation under section 55 of the Building Societies Act 1986;
- (f) a body administering a compensation scheme under section 54 of the Financial Services Act 1986;
- (g) an inspector appointed under section 94 of that Act;
- (h) a person exercising powers by virtue of section 106 of that Act;
- (i) an inspector appointed under section 177 of that Act or any corresponding enactment having effect in Northern Ireland;
- (k) an inspector appointed under section 38 of the Banking Act 1987;
- (l) a person exercising powers by virtue of section 44(2) of the Insurance Companies Act 1982;
- (m) any body having supervisory, regulatory or disciplinary functions in relation to any profession or any area of commercial activity; and
- (n) any person or body having, under the law of any country or territory outside the United Kingdom, functions corresponding to any of the functions of any person or body mentioned in any of the foregoing paragraphs.

(6) An order under subsection (4)(d) above may impose conditions subject to which, and otherwise restrict the circumstances in which, information may be disclosed under that paragraph.

Power to petition
for winding up
etc. on
information
obtained under
section 52.
1986 c. 46.

55. The words "or section 52 of the Criminal Justice (Scotland) Act 1987" shall be inserted—

- (a) in section 440 of the Companies Act 1985, after the words "that Act";
- (b) in section 8(1) of the Company Directors Disqualification Act 1986, after the words "the Financial Services Act 1986", in the second place where they occur; and
- (c) in Article 433 of the Companies (Northern Ireland) Order 1986, after the words "that Act".

Conditional offer by procurator fiscal

Conditional offer
of fixed penalty by
procurator fiscal.

56.—(1) Where a procurator fiscal receives a report that a relevant offence has been committed he may send to the alleged offender a notice under this section (referred to in this section as a conditional offer); and where he issues a conditional offer the procurator fiscal shall notify the clerk of court specified in it of the issue of the conditional offer and of its terms.

1982 c. 49.

(2) In this section "a relevant offence" means any offence in respect of which an alleged offender could competently be tried before a district court, but shall not include a fixed penalty offence within the meaning of section 27(5) as extended by section 42(3) of the Transport Act 1982.

(3) A conditional offer—

PART II

- (a) shall give such particulars of the circumstances alleged to constitute the offence to which it relates as are necessary for giving reasonable information about the alleged offence;
- (b) shall state—
 - (i) the amount of the fixed penalty for that offence;
 - (ii) the amount of the instalments by which the penalty may be paid; and
 - (iii) the intervals at which such instalments should be paid;
- (c) shall indicate that if, within twenty-eight days of the date on which the conditional offer was issued, or such longer period as may be specified in the conditional offer, the alleged offender accepts the offer by making payment of the fixed penalty or of the first instalment thereof to the clerk of court specified in the conditional offer at the address therein mentioned, any liability to conviction of the offence shall be discharged;
- (d) shall state that proceedings against the alleged offender shall not be commenced in respect of that offence until the end of a period of twenty-eight days from the date on which the conditional offer was issued, or such longer period as may be specified in the conditional offer; and
- (e) shall state that acceptance of the offer in the manner described in paragraph (c) above by the alleged offender shall not be a conviction nor be recorded as such.

(4) Where payment of the fixed penalty or of the first instalment has not been made to the clerk of court, he shall, upon the expiry of the period of twenty-eight days referred to in subsection (3)(c) above or such longer period as may be specified in the conditional offer, notify the procurator fiscal who issued the conditional offer that no payment has been made.

(5) Proceedings shall not be brought against any person for the offence to which a conditional offer relates until the procurator fiscal receives notification from the clerk of court in accordance with subsection (4) above.

(6) Where an alleged offender makes payment of the fixed penalty or of the first instalment to the clerk of court specified in the conditional offer no proceedings shall be brought against the alleged offender for the offence.

(7) The fixed penalty under this section shall be such sum, not exceeding level 1 on the standard scale, as the Secretary of State may, by order made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament determine; and an order under this subsection may contain provision as to the payment of the fixed penalty by instalments.

(8) Subject to subsection (9) below, where an alleged offender accepts a conditional offer by paying the first instalment of the fixed penalty, any amount of the penalty which is outstanding at any time shall be treated as if the penalty were a fine imposed by the court, the clerk of which is specified in the conditional offer.

(9) In the enforcement of a penalty which is to be treated as a fine in pursuance of subsection (8) above—

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- (a) any reference (howsoever expressed) in any enactment (whether passed or made before or after the coming into force of this section) to—

(i) the imposition of imprisonment or detention in default of payment of a fine shall be construed as a reference to enforcement by means of civil diligence;

(ii) the finding or order of the court imposing the fine shall be construed as a reference to a certificate given in pursuance of subsection (10) below;

(iii) the offender shall be construed as a reference to the alleged offender;

(iv) the conviction of the offender shall be construed as a reference to the acceptance of the conditional offer by the alleged offender;

- (b) the following enactments shall not apply—

- (i) in the 1975 Act—

section 395(1);

section 395A(2);

section 396(1) to (6);

section 403(6);

section 406;

section 407, except subsection (1)(b);

sections 408 and 409;

section 411(3); and

1980 c. 62.

- (ii) in the Criminal Justice (Scotland) Act 1980, section 52.

(10) For the purposes of any proceedings in connection with, or steps taken for, the enforcement of any amount of a fixed penalty which is outstanding, a document purporting to be a certificate signed by the clerk of court for the time being responsible for the collection or enforcement of the penalty as to any matter relating to the penalty shall be conclusive of the matter so certified.

(11) The Secretary of State may, by order made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament, make such provision as he considers necessary for the enforcement in England and Wales or Northern Ireland of any penalty (treated, in pursuance of subsection (8) above, as a fine) which is transferred as a fine to a court in England and Wales or, as the case may be, Northern Ireland.

Sittings of the High Court

High Court
sittings.
1975 c.21.

57.—(1) For section 112 of the 1975 Act (sittings of the Court of Justiciary) there shall be substituted the following new section—

“Place of
High Court
sittings.

112. Any crime or offence which is triable on indictment may be tried by the High Court sitting at any place in Scotland.”

(2) For section 114 of that Act (power of High Court to determine circuits etc.) there shall be substituted the following new section—

“Fixing of
High Court
sittings.

114.—(1) The High Court shall sit at such times and places as the Lord Justice General, whom failing the Lord Justice Clerk, may, after consultation with the Lord Advocate, determine.

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(2) Without prejudice to subsection (1) above, the High Court shall hold such additional sittings as the Lord Advocate may require.

(3) Where an accused person has been cited to attend a sitting of the High Court, the prosecutor may, at any time before the commencement of his trial, apply to the Court to transfer the case to another sitting of the High Court; and a single judge of the High Court may,—

(a) after giving the accused or his counsel an opportunity to be heard; or

(b) on the joint application of all parties, make an order for the transfer of the case.

(4) Where no cases have been indicted for a sitting of the High Court or if it is no longer expedient that a sitting should take place, it shall not be necessary for the sitting to take place.

(5) If any case remains indicted for a sitting which does not take place in pursuance of subsection (4) above, subsection (3) above shall apply in relation to the transfer of any such case to another sitting.”

Sentencing power of the sheriff

58.—(1) In section 2 of the 1975 Act (which limits the term of imprisonment which the sheriff may impose on indictment)—

(a) in subsection (2), for the words “two years” there shall be substituted the words “three years”;

(b) after subsection (2) there shall be inserted the following subsections—

“(3) Subject to subsection (4) below, where under any enactment passed or made before the commencement of section 58 of the Criminal Justice (Scotland) Act 1987 an offence is punishable on conviction on indictment by imprisonment for a term exceeding two years but the enactment either expressly or impliedly restricts the power of the sheriff to impose a sentence of imprisonment for a term exceeding two years, it shall be competent for the sheriff to impose a sentence of imprisonment for a term exceeding two but not exceeding three years.

(4) Nothing in subsection (3) above shall authorise the imposition by the sheriff of a sentence in excess of the sentence specified by the enactment as the maximum sentence which may be imposed on conviction of the offence.”

(2) In section 104 of the 1975 Act, after subsection (1) there shall be inserted the following new subsection—

“(1A) Where under any enactment an offence is punishable on conviction on indictment by imprisonment for a term exceeding three years but the enactment either expressly or impliedly restricts the power of the sheriff to impose a sentence of imprisonment for a term exceeding three years, it shall be competent for the sheriff to remit the convicted person to the High Court for sentence under subsection (1) above; and it shall be competent for the High Court to pass any sentence which it could have passed if the person had been convicted before it.”

Sentencing power
of sheriff in
solemn procedure.

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(3) In section 221(1) of that Act (abolition of penal servitude and hard labour), in the proviso, for the words "two years" there shall be substituted the words "three years".

Detention of children

Detention of
children in
summary
proceedings.

59.—(1) For section 413 of the 1975 Act (committal for residential training) there shall be substituted the following new section—

"Detention of
children.

413.—(1) Where a child appears before the sheriff in summary proceedings and pleads guilty to, or is found guilty of, an offence to which this section applies, the sheriff may order that he be detained in residential care by the appropriate local authority for such period, not exceeding one year, as the sheriff may determine in such place (in any part of the United Kingdom) as the local authority may, from time to time, consider appropriate.

(2) This section applies to any offence in respect of which it is competent to impose imprisonment on a person of the age of 21 years or more.

(3) In this section—

"the appropriate local authority" means—

(a) where the child usually resides in Scotland, the regional or islands council for the area in which he usually resides;

(b) in any other case, the regional or islands council for the area in which the offence was committed;

"care" shall be construed in accordance with section 32(3) of the 1968 Act, and the provisions of that Act specified in section 44(5) of that Act shall apply in respect of a child who is detained in residential care in pursuance of this section as they apply in respect of a child who is subject to a supervision requirement;

"the 1968 Act" means the Social Work (Scotland) Act 1968.

1968 c.49.

(4) Where a child in respect of whom an order is made under this section is also subject to a supervision requirement within the meaning of the 1968 Act, subject to subsection (6) below, the supervision requirement shall be of no effect during any period for which he is required to be detained under the order.

(5) The Secretary of State may, by regulations made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament, make such provision as he considers necessary as regards the detention in secure accommodation (within the meaning of the 1968 Act) of children in respect of whom orders have been made under this section.

(6) Section 20A of the 1968 Act (review of children in care) shall apply to a child detained in residential care in pursuance of an order under this section as if the references to care in that section were references to care within the meaning of this section; and, without prejudice to their duty to do so by virtue of the said section 20A, the local authority may, at any time,

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review the case of such a child and may, in consequence of such a review and after having regard to the best interests of the child and the need to protect members of the public, release the child—

- (a) for such period and on such conditions as they consider appropriate; or
- (b) unconditionally,

and where a child who is released unconditionally is subject to a supervision requirement within the meaning of the 1968 Act, the effect of the supervision requirement shall, in the case of a supervision requirement imposed during the period of detention, commence or, in any other case, resume upon such release.

(7) Where a local authority consider it appropriate that a child in respect of whom an order has been made under subsection (1) above should be detained in a place in any part of the United Kingdom outside Scotland, the order shall be a like authority as in Scotland to the person in charge of the place to restrict the child's liberty to such an extent as that person may consider appropriate having regard to the terms of the order.”.

(2) In section 463 of the 1975 Act—

- (a) in subsection (1)(b) for the words “and 390” there shall be substituted the words “, 390 and 413”; and
- (b) in subsection (1A) for the words “and 374” there shall be substituted the words “, 374 and 413”.

(3) Notwithstanding the repeal by this Act of section 58A of the Children and Young Persons (Scotland) Act 1937, any child who, before the commencement of this section, has been ordered to be detained pursuant to the directions of the Secretary of State under section 413 of the 1975 Act—

- (a) shall, while so detained after such commencement, continue to be deemed to be in legal custody; and
- (b) may at any time be released conditionally or unconditionally by the Secretary of State, and any such child conditionally released shall be liable to recall on the directions of the Secretary of State and if he fails to comply with any condition of his release he may be apprehended without warrant and taken to the place from which he was released.

Evidence

60.—(1) Subject to subsection (2) below, for the purposes of any criminal proceedings, a document certified by the person who made it as an accurate transcript made for the prosecutor of the contents of a tape (identified by means of a label) purporting to be a recording of an interview between a police officer and an accused person shall be received in evidence and be sufficient evidence of the making of the transcript and of its accuracy.

Transcript of
police interview
sufficient evidence

(2) Subsection (1) above shall not apply to a transcript—

- (a) unless a copy of it has been served on the accused not less than 14 days before his trial; or

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- (b) if the accused, not less than six days before his trial, or by such later time before his trial as the court may in special circumstances allow, has served notice on the prosecutor that the accused challenges the making of the transcript or its accuracy.

(3) A copy of the transcript or a notice under subsection (2) above may be served personally or sent to the person on whom it is required to be served by registered post or by the recorded delivery service; and a written execution purporting to be signed by the person who served the transcript or notice, together with, where appropriate, a post office receipt for the relative registered or recorded delivery letter shall be sufficient evidence of such service.

(4) Where subsection (1) above does not apply to a transcript, if the person who made the transcript is called as a witness his evidence shall be sufficient evidence of the making of the transcript and of its accuracy.

**Evidence on
commission.
1980 c. 62.**

61.—(1) Section 32 of the Criminal Justice (Scotland) Act 1980 (which permits, in certain circumstances, the taking and admission of evidence on commission or by letter of request) shall have effect subject to the amendments specified in subsections (2) and (3) below.

(2) In paragraph (b) of subsection (1)—

- (a) after the word “who” there shall be inserted “(i)”; and
(b) at the end of the paragraph there shall be inserted the words “or
(ii) is not ordinarily resident in, and is, at the time of the trial diet, unlikely to be present in, the United Kingdom, Channel Islands or the Isle of Man.”.

(3) In subsection (4) at the end there shall be added the words “; and without prejudice to the generality of the power to make it, such an Act of Adjournal may provide for the appointment of a person before whom evidence may be taken for the purposes of this section.”.

Miscellaneous

**Ordayning to
appear.**

62.—(1) In section 328 of the 1975 Act (adjournment for inquiry)—

- (a) after the words “liberate him on bail” there shall be inserted the words “, ordain him to appear”; and
(b) in the proviso, after the words “allow bail” there shall be inserted the words “or to ordain a person to appear”.

(2) In section 329(1) of the 1975 Act (remand and committal of persons under 21) after the words “released on bail” there shall be inserted the words “or ordained to appear”.

(3) In paragraph (d) of section 337 of the 1975 Act (procedure following plea of not guilty by accused in custody) for the words from “either” there shall be substituted the following—

“(i) if he is neither granted bail nor ordained to appear, or

(ii) if he is granted bail on a condition imposed under section 1(3) of the Bail etc. (Scotland) Act 1980 that a sum of money is deposited in court, until the accused or a cautioner on his behalf has so deposited that sum.”.

1980 c. 4.

(4) In section 300 of the 1975 Act (bail appeals)—

(a) in subsection (1)–

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(i) after the word “granted” there shall be inserted the words “or where the person is ordained to appear”, and

(ii) after the words “amount fixed” there shall be inserted the words “or that such person has been ordained to appear”; and

(b) after subsection (4) there shall be inserted the following new subsection—

“(4A) When an appeal is taken by the prosecutor under this section against the fact that the person has been ordained to appear, subsection (4) above shall apply as it applies in the case of an appeal against the granting of bail or against the amount fixed.”.

63. After each of sections 139 and 342 of the 1975 Act there shall be inserted the following new section where it shall be numbered respectively 139A and 342A—

Power to permit witness to be in court during trial.

“Power to permit witness to be in court during trial.

The court may, on an application by any party to the proceedings, permit a witness to be in court during the proceedings or any part of the proceedings before he has given evidence if it appears to the court that the presence of the witness would not be contrary to the interests of justice.”.

64.—(1) In each of sections 216 and 428 of the 1975 Act for the words “statute or order” there shall be substituted the word “enactment”; and each of those sections as so amended shall be subsection (1) of that section and in each of those sections there shall be inserted the following subsection—

Aiding and abetting.

“(2) Without prejudice to subsection (1) above or to any express provision in any enactment having the like effect to this subsection, any person who aids, abets, counsels, procures or incites any other person to commit an offence against the provisions of any enactment shall be guilty of an offence and shall be liable on conviction, unless the enactment otherwise requires, to the same punishment as might be imposed on conviction of the first-mentioned offence.”.

(2) Subsection (1) above shall not apply to an offence committed before the commencement of this section.

65.—(1) In each of sections 183 and 384 of the 1975 Act (probation orders) after subsection (5A) there shall (subject to subsection (2) below) be inserted the following subsections—

Compensation requirement in probation order.

“(5B) Without prejudice to the generality of subsection (4) above, where a court is considering making a probation order it may include in the probation order, in addition to any other requirement, a requirement that the offender shall pay compensation either in a lump sum or by instalments for any personal injury, loss or damage caused (whether directly or indirectly) by the acts which constituted the offence; and the following provisions of the Criminal Justice (Scotland) Act 1980 shall apply to such a requirement as if any reference in them to a compensation order included a reference to a requirement to pay compensation under this subsection—

section 58(2) and (3);

section 59 (except the proviso to subsection (1));

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section 60;
 section 62;
 section 64 (except paragraph (a));
 section 67.

(5C) Where the court imposes a requirement to pay compensation under subsection (5B) above—

- (a) it shall be a condition of a probation order containing such a requirement that payment of the compensation shall be completed not more than eighteen months after the making of the order or not later than two months before the end of the period of probation whichever first occurs;
- (b) the court, on the application of the offender or the officer of the local authority responsible for supervising the offender, may vary the terms of the requirement, including the amount of any instalments, in consequence of any change which may have occurred in the circumstances of the offender; and
- (c) in any proceedings for breach of a probation order where the breach consists only in the failure to comply with a requirement to pay compensation, a document purporting to be a certificate signed by the clerk of the court for the time being having jurisdiction in relation to the order that the compensation or, where payment by instalments has been allowed, any instalment has not been paid shall be sufficient evidence of such breach.”.

(2) In inserting the new subsection (5B)—

1980 c. 62.

- (a) into the said section 183, after the words “subsection (1)” in the reference in that new subsection to section 59 of the Criminal Justice (Scotland) Act 1980 there shall be added the words “and subsection (2)”;
- (b) into the said section 384, after the words “subsection (1)” in that reference there shall be added the words “and subsection (3)”.

(3) In subsection (4) of each of the said sections 183 and 384 after the words “subsection (5A)” there shall be inserted the words “or (5B)”.

(4) In subsection (6) of each of the said sections 183 and 384 for the words “or (5A)” there shall be substituted the words “(5A), (5B) or (5C)”.

1975 c. 21.

(5) In each of sections 186(2)(a) and 387(2)(a) of the 1975 Act (failure to comply with requirements of a probation order) at the beginning of the paragraph there shall be inserted the words “except in the case of a failure to comply with a requirement to pay compensation and ”.

Penalties in
 respect of
 summary
 conviction for
 certain offences.

66.—(1) In section 289G of the 1975 Act (which creates the standard scale and amends certain enactments accordingly), after subsection (9) there shall be added the following new subsections—

“(10) Subject to subsection (12) below, where under a relevant subordinate instrument the fine or maximum fine on conviction of a summary offence specified in the instrument is an amount shown in the second column of the standard scale, the reference in the instrument to the amount of the fine or maximum fine shall be construed as a reference to the level in the first column of the standard scale corresponding to that amount.

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(11) In subsection (10) above, "relevant subordinate instrument" means any instrument made by virtue of an enactment after 30th April 1984 and before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987.

(12) Subsection (10) above shall not affect so much of any instrument as (in whatever words) makes a person liable on summary conviction to a fine not exceeding a specified amount for each period of a specified length during which a continuing offence is continued after conviction or the occurrence of any other specified event.

(13) Where there is, under any enactment (however framed or worded) contained in an Act passed before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987, a power to create summary offences by subordinate instrument, the maximum fine for a summary offence so created may be expressed as a fine not exceeding a level on the standard scale.

(14) Subsection (13) above has effect in relation to exercises of powers before as well as after the commencement of section 66 of the Criminal Justice (Scotland) Act 1987."

(2) After section 289G of the 1975 Act there shall be inserted the following new sections—

"Statutory maximum as penalty in respect of summary conviction for offences in subordinate instruments.

289GA.—(1) Where there is, under any enactment (however framed or worded) contained in an Act passed before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987, a power by subordinate instrument to create a criminal offence triable either on indictment or summarily, the maximum fine which may, in the exercise of the power, be authorised on summary conviction shall, by virtue of this section, be the statutory maximum (unless some larger maximum fine can be authorised on summary conviction of such an offence by virtue of an enactment other than this subsection).

(2) Where there is, under any enactment (however framed or worded) contained in an Act passed before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987, a power to create offences triable either on indictment or summarily by subordinate instrument, the maximum fine on summary conviction for such an offence may be expressed as a fine not exceeding the statutory maximum.

(3) Subsections (1) and (2) above shall have effect in relation to any exercise of such power before as well as after the commencement of section 66 of the Criminal Justice (Scotland) Act 1987.

(4) Where an offence created by a subordinate instrument made before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987 may be tried either on indictment or summarily, the maximum fine which may be imposed on

PART II

summary conviction shall by virtue of this subsection be the statutory maximum (unless the offence is one for which by virtue of the instrument a larger maximum fine may be imposed on summary conviction).

(5) Where a person summarily convicted of any offence to which subsection (4) above relates would, apart from this section, be liable to a fine or to a maximum fine of an amount in the case of a first conviction and of a different amount in the case of a second or subsequent conviction, subsection (4) above shall apply irrespective of whether the conviction is a first, second or subsequent one.

(6) Subsection (4) above shall not affect so much of any instrument as (in whatever words) makes a person liable on summary conviction to a fine not exceeding a specified amount for each period of a specified length during which a continuing offence is continued after conviction or the occurrence of any other specified event.

(7) Nothing in this section shall affect the punishment for an offence committed before the commencement of section 66 of the Criminal Justice (Scotland) Act 1987.

Exceptionally
high
maximum
fines.

289GB.—(1) The Secretary of State may by order amend an enactment or subordinate instrument specifying a sum to which this subsection applies so as to substitute for that sum such other sum as appears to him—

- (a) to be justified by a change in the value of money appearing to him to have taken place since the last occasion on which the sum in question was fixed; or
- (b) to be appropriate to take account of an order altering the standard scale which has been made or is proposed to be made.

(2) Subsection (1) above applies to any sum which—

- (a) is higher than level 5 on the standard scale; and
- (b) is specified as the fine or the maximum fine which may be imposed on conviction of an offence which is triable only summarily.

(3) The Secretary of State may by order amend an enactment or subordinate instrument specifying a sum to which this subsection applies so as to substitute for that sum such other sum as appears to him—

- (a) to be justified by a change in the value of money appearing to him to have taken place since the last occasion on which the sum in question was fixed; or
- (b) to be appropriate to take account of an order made or proposed to be made altering the statutory maximum.

(4) Subsection (3) above applies to any sum which—

- (a) is higher than the statutory maximum; and
- (b) is specified as the maximum fine which may be imposed on summary conviction of an offence triable either on indictment or summarily.

(5) An order under this section—

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- (a) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament; and
 - (b) shall not affect the punishment for an offence committed before that order comes into force.
- (6) In this section—
- “enactment” includes an enactment contained in an Act passed after the Criminal Justice (Scotland) Act 1987; and
- “subordinate instrument” includes an instrument made after the passing of that Act.”.

67.—(1) In subsection (1A) of section 407 of the 1975 Act (periods of imprisonment for non-payment of fines), in the Table, for the entry relating to an amount exceeding £50,000 there shall be substituted the following entries—

“Exceeding £50,000 but not exceeding £100,000	2 years
Exceeding £100,000 but not exceeding £250,000	3 years
Exceeding £250,000 but not exceeding £1 million	5 years
Exceeding £1 million	10 years.”.

Increases in periods of imprisonment for non-payment of fines etc.
1975 c.21.

(2) At the end of the said section 407 there shall be added the following subsection—

“(5) Where in any case—

- (a) the sheriff considers that the imposition of imprisonment for the number of years for the time being specified in section 2(2) of this Act would be inadequate; and
- (b) the maximum period of imprisonment which may be imposed under subsection (1) above (or under that subsection as read with either or both of sections 66(2) of the Criminal Justice (Scotland) Act 1980 and 7(2) of the Criminal Justice (Scotland) Act 1987) exceeds that number of years,

1980 c.62.

he shall remit the case to the High Court for sentence.”.

68.—(1) After section 443 of the 1975 Act there shall be inserted the following new section—

“Suspension of disqualification, forfeiture etc.

443A.—(1) Where upon conviction of any person—

- (a) any disqualification, forfeiture or disability attaches to him by reason of such conviction; or
- (b) any property, matters or things which are the subject of the prosecution or connected therewith are to be or may be ordered to be destroyed or forfeited,

Suspension of disqualification, forfeiture etc.

if the court before which he was convicted thinks fit, the disqualification, forfeiture or disability or, as the case may be, destruction or forfeiture or order for destruction or forfeiture shall be suspended pending the determination of any appeal against conviction or sentence.

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(2) Subsection (1) above does not apply in respect of any disqualification, forfeiture or, as the case may be, destruction or forfeiture or order for destruction or forfeiture under or by virtue of any enactment which contains express provision for the suspension of such disqualification, forfeiture or, as the case may be, destruction or forfeiture or order for destruction or forfeiture pending the determination of any appeal against conviction or sentence.”.

(2) In section 264 of that Act (suspension of disqualification, forfeiture etc. in solemn proceedings) after subsection (2) there shall be inserted the following new subsection—

“(3) Subsections (1) and (2) above do not apply in respect of any disqualification, forfeiture or, as the case may be, destruction or forfeiture or order for destruction or forfeiture under or by virtue of any enactment which contains express provision for the suspension of such disqualification, forfeiture or, as the case may be, destruction or forfeiture or order for destruction or forfeiture pending the determination of any appeal against conviction or sentence.”.

S.I. 1975/473.

(3) Section 2 of the Act of Adjournal, Suspension of Disqualification from Driving Pending Appeal 1975 is hereby revoked.

PART III**GENERAL**

Interpretation.

69. In this Act—

1971 c.38.

“controlled drug” has the meaning assigned by section 2 of the Misuse of Drugs Act 1971; and

1975 c.21.

“the 1975 Act” means the Criminal Procedure (Scotland) Act 1975; and provision for the construction of the expressions “administrator”, “associate”, “authorised government department”, “confiscation order”, “drug trafficking”, “implicative gift”, “realisable property”, “restraint order” and “the 1985 Act” is made by section 47(1) of this Act.

Amendments and
repeals.

70.—(1) The enactments mentioned in Schedule 1 to this Act shall have effect subject to the amendments respectively specified in that Schedule, being minor amendments and amendments consequential on the provisions of this Act.

(2) The enactments set out in columns 1 and 2 of Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Expenses.

71. There shall be paid out of money provided by Parliament—

(a) any amount payable—

(i) under section 20(2) of this Act in respect of remuneration or expenses of administrators; or

(ii) as compensation under section 26(4)(c) of this Act;

(b) any administrative expenses incurred by the Secretary of State, or by the Lord Advocate, in consequence of this Act; and

- (c) any increase attributable to this Act in the sums payable out of money so provided under any other Act.

PART III

72.—(1) This Act may be cited as the Criminal Justice (Scotland) Act 1987; and subject to subsection (4) below it extends to Scotland only.

Short title,
commencement
and extent.

(2) This Act, except this section, shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint; and different days may be so appointed for different purposes and for different provisions.

(3) An order under subsection (2) above may contain such transitional provisions and savings as appear to the Secretary of State necessary or expedient in connection with the provisions brought into force (whether wholly or partly) by the order.

(4) This section and sections 4(5), 20(1), 33 to 37, 41(10) to (12), 45(2), (3) and (7)(c) and (f), 47, 55(a) and (b) and 69 of, and, in so far as relating to the Drug Trafficking Offences Act 1986, section 70(2) of, and Schedule 2 to, this Act extend to England and Wales as well as to Scotland; sections 51 to 53, 56(11) and 59 extend to England and Wales and to Northern Ireland as well as to Scotland; sections 31 and 45(1), (4) and (7)(a), (b), (d) and (e) extend to England and Wales only; and section 55(c) extends to Northern Ireland only.

1986 c.32.

Section 70(1).

SCHEDULES

SCHEDULE 1

MINOR AND CONSEQUENTIAL AMENDMENTS

The Juries Act 1949 (c. 27)

1. In paragraph (b) of section 25(1), for the words "on circuit" there shall be substituted the words "other than at Edinburgh".

The Judicial Offices (Salaries etc.) Act 1952 (c. 12)

2. In section 2(1), for the words "circuit court expenses" there shall be substituted the words "expenses in connection with sittings of the High Court of Justiciary outwith Edinburgh".

The Road Traffic Act 1972 (c. 20)

3. In section 101 (endorsement of licences) for subsection (8) there shall be substituted the following subsections—

"(8) Notwithstanding sections 311(5) and 357(1) of the Criminal Procedure (Scotland) Act 1975 (requirements as to notices of penalty and previous convictions), where a person is convicted in Scotland of an offence involving obligatory endorsement—

- (a) where his licence is produced to the court, subsection (4A) above shall apply;
- (b) where no such licence is produced, subject to subsection (8B) below, subsection (8A) below shall apply.

(8A) Where this subsection applies, it shall be competent for the court in determining what order to make in pursuance of such conviction as is mentioned in subsection (8) above to take into consideration particulars of—

- (a) any previous conviction or disqualification pertaining to the person; and
- (b) any penalty points ordered to be endorsed on any licence held by the person which have to be taken into account under section 19(3) of the Transport Act 1981,

specified in a document purporting to be a note of information contained in the driver licensing records maintained by the Secretary of State in connection with his functions under this Part of this Act.

(8B) Where the prosecutor decides to put before the court a document such as is mentioned in subsection (8A) above—

- (a) if a plea of guilty is tendered, or if, after a plea of not guilty, the accused is convicted the prosecutor shall lay the document before the court and the court or the clerk of court shall ask the accused if he admits the accuracy of the particulars relating to him contained in the document and if such admission is made it shall be entered in the record of the proceedings;
- (b) it shall not be necessary for the prosecutor to produce evidence of the particulars so admitted; and
- (c) where the accused does not admit the accuracy of any such particular, the prosecutor unless he withdraws the particular shall adduce evidence in proof thereof either then or at any other diet."

The Criminal Procedure (Scotland) Act 1975 (c. 21)

SCH 1

4. In section 5(1) (crimes committed in different districts)—
 - (a) for the words “a court to be held in” there shall be substituted the words “the sheriff court of”; and
 - (b) the words “, whether that court is the High Court or the sheriff court” shall be omitted.
5. In section 86 (selection of jurors)—
 - (a) for the words “The High Court may by Act of Adjournal specify” there shall be substituted the words “The Lord Justice General, whom failing the Lord Justice Clerk, may give directions as to”; and
 - (b) for the words “in that court to be held in Edinburgh” there shall be substituted the words “to be held in the High Court”,
and the section as amended shall be subsection (1); and there shall be added the following new subsection—

“(2) Where a sitting of the High Court is to be held at a town in which the High Court does not usually sit, the jury summoned to try any case in such a sitting shall be summoned from the general jury roll of the sheriff court district in which the town is situated.”
6. In section 113(2) (difference as to rotation of judges) at the end there shall be added the words “whom failing by the Lord Justice Clerk”.
7. In section 129 (balloting of jurors), after the word “aside,” there shall be inserted the words “or shall, before any evidence is led, be excused”.
8. In each of sections 141(3) and 346(3) (which permit the prosecutor or an accused to call a co-accused as a witness)—
 - (a) after the words “guilty to ” there shall be inserted the words “or been acquitted of”;
 - (b) after the words “whether or not” there shall be inserted the words “, in a case where the co-accused has pleaded guilty to any charge,”; and
 - (c) after the word “sentenced)” there shall be inserted the words “or in respect of whom the diet has been deserted”.
9. In section 149(1) (calling additional evidence)—
 - (a) for the words “after the close of that party’s evidence and” there shall be substituted the words “at any time”; and
 - (b) in paragraph (b) for the words “party’s evidence was closed” there shall be substituted the words “jury was sworn”.
10. In each of sections 183(1) and 384(1) (probation orders)—
 - (a) after the word “offender” where it first occurs there shall be inserted the words “and having obtained a report as to the circumstances and character of the offender”; and
 - (b) for the word “one” there shall be substituted the words “six months”.
11. In section 212(1) (recall to young offenders institution on reconviction)—
 - (a) the words “in a” shall be omitted; and
 - (b) for the words “an institution” there shall be substituted the word “detention”.
12. In each of sections 215 and 426 (detention etc. deemed to be legal custody) for the words “Part I of the Criminal Justice (Scotland) Act 1980” there shall be substituted the words “any other enactment or any subordinate instrument”.

SCH 1

13.—(1) In section 245(1) (quorum and sitting of the High Court in appeals), for the words “or other proceeding under this Part of this Act” there shall be substituted the words “under this Part of this Act or any proceeding connected therewith”.

(2) In section 246 (arrangement of appeal sittings), after the words “section 247 of this Act)” there shall be inserted the words “for the purposes of hearing and determining any appeal under this Part of this Act or any proceeding connected therewith”.

14.—(1) In section 268 (reckoning of time spent in custody pending appeal), for subsection (1) there shall be substituted the following subsection—

“(1) Subject to subsection (2) below, where an appellant is admitted to bail under section 238 of this Act the period beginning with the date of his admission to bail and ending on the date of his readmission to prison in consequence of the determination or abandonment of his appeal shall not be reckoned as part of any term of imprisonment under this sentence.”.

(2) In subsection (2) of that section, after the word “appeal” there shall be inserted the words “, including any period spent in custody in consequence of the recall of his bail,”.

(3) For subsection (3) of that section there shall be substituted the following subsection—

“(3) Subject to any direction which the High Court may give to the contrary, imprisonment of an appellant—

- (a) who is in custody in consequence of the conviction or sentence appealed against shall be deemed to run as from the date on which the sentence was passed;
- (b) who is in custody other than in consequence of such conviction or sentence shall be deemed to run or to be resumed as from the date on which his appeal was determined or abandoned;
- (c) who is not in custody shall be deemed to run or to be resumed as from the date on which he is received into prison under the sentence.”.

15. In section 289B—

- (a) in subsection (7) for the words “Subsection (4) above” there shall be substituted the words “Section 289GA(1) of this Act”; and
- (b) in subsection (8) for the words “subsection (4) above” there shall be substituted the words “section 289GA(1) of this Act”.

The Criminal Justice (Scotland) Act 1980 (c. 62)

16. In section 2 (police detention)—

- (a) in subsection (2), the word “or” at the end of paragraph (a) shall be omitted and there shall be inserted the following new paragraph—

“(aa) when he is detained in pursuance of any other enactment or subordinate instrument; or”;
- (b) in that subsection, for the words “for a period of six hours, he shall be informed immediately upon expiry of this period” there shall be substituted the words “he shall be informed immediately upon the termination of his detention in accordance with this subsection”; and

- (c) after subsection (3) there shall be inserted the following new subsection— SCH 1

“(3A) Where a person has previously been detained in pursuance of any other enactment or subordinate instrument, he may not be detained under subsection (1) above on the same grounds or on grounds arising from the same circumstances as those which led to his earlier detention.”.

17. In paragraph (b)(ii) of section 41(2) (construction of “detention” in England and Wales), after the words “England and Wales,” there shall be inserted the words “a sentence of youth custody,”.

18.—(1) In Schedule 1 (certificates as to proof of certain routine matters), as the first entry there shall be inserted—

“The Wireless Telegraphy Act 1949

(c.54). Section 1 in so far as it relates to the installation or use of apparatus designed for the purpose of receiving and exhibiting television programmes broadcast for general reception.

A person authorised to do so by the Secretary of State.

In relation to an address specified in the certificate, whether on a date so specified any television receiving licence (within the meaning of the Wireless Telegraphy (Broadcast Licence Charges and Exemption) Regulations 1984) was, in records maintained on behalf of the Secretary of State in relation to such licences, recorded as being in force; and, if so, particulars so specified of such record of that licence.”.

S.I. 1984/1053.

(2) In that Schedule, in the entry relating to the Misuse of Drugs Act 1971, in column 3 (matters which may be certified) the word “and” shall be omitted and after the word “classification” there shall be inserted the words “purity, weight and description”. 1971 c.38.

The Contempt of Court Act 1981 (c. 49)

19.—(1) In section 15 (penalties for contempt of court in Scottish proceedings) after subsection (5) there shall be inserted the following subsection—

“(6) For the purposes of section 60 of the Criminal Justice Act 1967 (release on licence of prisoners serving determinate sentences) a penalty of a period of imprisonment imposed for contempt of court shall be treated as a sentence of imprisonment within the meaning of that Act.”.

(2) Section 15, as amended, shall have effect as regards any penalty imposed before as well as after the coming into force of this paragraph.

Section 70(2).

SCHEDULE 2

REPEALS

Chapter	Short title	Extent of repeal
8 Anne c. 16.	The Circuit Courts (Scotland) Act 1709.	The whole Act.
20 Geo. 2 c. 43.	The Heritable Jurisdiction (Scotland) Act 1746.	Sections 32 to 34. Sections 36 and 37. Section 40.
9 Geo. 4 c. 29.	The Circuit Courts (Scotland) Act 1828.	Section 15. Section 24.
11 & 12 Vict. c. 79.	The Justiciary (Scotland) Act 1848.	Section 5.
61 & 62 Vict. c. 40.	The Circuit Clerks (Scotland) Act 1898.	The whole Act.
1 Edw 8 and 1 Geo 6. c. 37.	The Children and Young Persons (Scotland) Act 1937.	Section 58A.
1968 c. 49.	The Social Work (Scotland) Act 1968.	In Schedule 2, paragraph 16.
1972 c. 20.	The Road Traffic Act 1972.	In Schedule 4, Part I in the entry relating to section 1, the words "or, in the case of a conviction by a court in Scotland other than the High Court of Justiciary, 2 years."
1974 c. 50.	The Road Traffic Act 1974.	In Schedule 3, paragraph 10(4).
1975 c. 21.	The Criminal Procedure (Scotland) Act 1975.	In section 5(1), the words " , whether that court is the High Court or the sheriff court". Sections 87 and 88. In section 113, subsection (3) and in the proviso to subsection (4) the words "in Edinburgh or on circuit". Sections 115 to 119. Section 193B. In section 263(2), the words " , or on any point arising on the case,". Section 289B(3) and (4). In section 289D, in subsection (1A), paragraphs (f) and (g); subsections (2) and (3); and in subsection (4) the words "or (2)". Section 300(5).
1976 c. 67.	The Sexual Offences (Scotland) Act 1976.	In section 2D(5), in paragraph (a) the words "in the High Court of Justiciary"; and paragraph (b).
1978 c. 49.	The Community Service by Offenders (Scotland) Act 1978.	In section 7, paragraph (c).
1985 c. 73.	The Law Reform (Miscellaneous Provisions) (Scotland) Act 1985.	Section 39.
1986 c. 32.	The Drug Trafficking Offences Act 1986.	In each of sections 13(1), 15(2), 16(2) and 17(2) the words "or on the Court of Session by sections 20 to 22 of this Act". Sections 20 to 23. In section 27, in subsection (1), the words "or, in Scotland, the procurator fiscal" and "or, in Scotland, the sheriff"; in each of subsections (2) and (3) the words "or, as the case may be, the sheriff"; in subsection (5), the words "or, in Scotland, the procurator fiscal"; and in subsection (6), the words "or, as respects Scotland, rules of court". In section 28, in subsection (1), the words "or, in Scotland, the

SCH 2

Chapter	Short title	Extent of repeal
		procurator fiscal" and "or, in Scotland, the sheriff."; and in subsection (2), the words "or, as the case may be, the sheriff". Section 29(3). In section 33(2), the word "or" at the end of paragraph (b). In section 40(4), paragraph (a); in paragraph (b), the references to section 7(3), to section 8(8) and (9), to section 13, to section 24(3)(a) and to sections 27 to 29; and paragraph (c).